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ADDENDUM

Contract #00000000000000000000051025

This Addendum is entered into by and between **Indiana Department of Workforce Development** ("the State") and the entity designated as "the Contractor" below. In consideration of those mutual undertakings and covenants, the parties agree as follows:

The purpose of this Addendum is to modify, delete, or amend certain terms and conditions set forth in the attached Form Contract prepared by the Contractor (the "Form Contract"). This Addendum, the State's Additional Terms and Conditions for SaaS Engagements **("Exhibit A"),** and the Form Contract are incorporated into each other and, when read together, shall constitute one integrated document ("this Contract"). Any inconsistency, conflict, or ambiguity among these documents shall be resolved by giving precedence and effect to this Addendum.

Contractor Name: Pondera Solutions LLC

Contractor Address: 80 Blue Ravine Road #250, Folsom, CA 95630

Title of Form Contract: **Form Contract, Attached as "Exhibit C" and Sales Order Form, Attached as "Exhibit D"**

1. By mutual agreement of the parties, the following terms and conditions are deleted from the Form Contract:
    A. Any provision requiring the State of Indiana to provide insurance
    B. Aeny provision requiring the State of Indiana to provide indemnity, defend, or hold harmless the Contractor
    C. Any provision providing that the Contract be construed in accordance with laws other than those of the State of Indiana
    D. Any provision providing that suit be brought in any state other than Indiana
    E. Any provision providing for resolution of contract disputes
    F. Any provision requiring the State of Indiana to pay any taxes
    G. Any provision requiring the State of Indiana to pay penalties, liquidated damages, interest or attorney's fees
    H. Any provision modifying the applicable Indiana statute of limitations
    I. Any provision relating to the time within which a claim must be made.
    J. Any provision requiring payment of consideration in advance unless authorized by an exception listed in IC § 4-13-2-20
    K. Any provision limiting disclosure of the contract in violation of the Access to Public Records Act, IC § 5-14-3. This is a Public Contract and will be posted on the transparency portal as required by Executive Order 05-07 and IC § 5-14-3.5-2.
    L. Any provision requiring payment in less than 35 days
    M. Any provision providing for automatic renewal

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N. Any provision giving the Form Contract precedence over this Addendum

2. **Form Contract/Duties of Contractor.** The Contractor shall provide the Services or Products described in the Form Contract.

3. **Term.** This Contract begins on **March 31, 2021** and ends **March 30, 2024**.

4. **Consideration.** Total consideration for term of this Contract is **$2,067,478.35**. The Vendor shall perform the work outlined in the Scope of Work **(Exhibit E)** and be paid rates identified in **Exhibit F**.

5. **Access to Records.** The Contractor and its subcontractors, if any, shall maintain all books, documents, papers, accounting records, and other evidence pertaining to all costs incurred under this Contract. They shall make such materials available at their respective offices at all reasonable times during this Contract, and for three (3) years from the date of final payment under this Contract, for inspection by the State or its authorized designees. Copies shall be furnished at no cost to the State if requested.

6. **Assignment; Successors.**

   A. The Contractor binds its successors and assignees to all the terms and conditions of this Contract. The Contractor may assign its right to receive payments to such third parties as the Contractor may desire without the prior written consent of the State, provided that the Contractor gives written notice (including evidence of such assignment) to the State thirty (30) days in advance of any payment so assigned. The assignment shall cover all unpaid amounts under this Contract and shall not be made to more than one party.

   B. The Contractor shall not assign or subcontract the whole or any part of this Contract without the State's prior written consent. Additionally, the Contractor shall provide prompt written notice to the State of any change in the Contractor's legal name or legal status so that the changes may be documented and payments to the successor entity may be made.

7. **Assignment of Antitrust Claims.** As part of the consideration for the award of this Contract, the Contractor assigns to the State all rights, title and interest in and to any claims the Contractor now has, or may acquire, under state or federal antitrust laws relating to the products or services which are the subject of this Contract.

8. **Audits.** The Contractor acknowledges that it may be required to submit to an audit of funds paid through this Contract. Any such audit shall be conducted in accordance with IC § 5-11-1, et seq., and audit guidelines specified by the State.

   The State considers the Contractor to be a "Contractor" under 2 C.F.R. 200.330 for purposes of this Contract. However, if it is determined that the Contractor is a "subrecipient" and if required by applicable provisions of 2 C.F.R. 200 (Uniform Administrative Requirements, Cost Principles, and Audit Requirements), Contractor shall arrange for a financial and compliance audit, which complies with 2 C.F.R. 200.500 et seq.

9. **Authority to Bind Contractor.** The signatory for the Contractor represents that he/she has been duly authorized to execute this Contract on behalf of the Contractor and has

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obtained all necessary or applicable approvals to make this Contract fully binding upon the Contractor when his/her signature is affixed, and accepted by the State.

10. **Changes in Work.** The Contractor shall not commence any additional work or change the scope of the work until authorized in writing by the State. The Contractor shall make no claim for additional compensation in the absence of a prior written approval and amendment executed by all signatories hereto. This Contract may only be amended, supplemented or modified by a written document executed in the same manner as this Contract.

11. **Compliance with Laws.**

A. The Contractor shall comply with all applicable federal, state, and local laws, rules, regulations, and ordinances, and all provisions required thereby to be included herein are hereby incorporated by reference. The enactment or modification of any applicable state or federal statute or the promulgation of rules or regulations thereunder after execution of this Contract shall be reviewed by the State and the Contractor to determine whether the provisions of this Contract require formal modification.

B. The Contractor and its agents shall abide by all ethical requirements that apply to persons who have a business relationship with the State as set forth in IC § 4-2-6, et seq., IC § 4-2-7, et seq. and the regulations promulgated thereunder**. If the Contractor has knowledge, or would have acquired knowledge with reasonable inquiry, that a state officer, employee, or special state appointee, as those terms are defined in IC § 4-2-6-1, has a financial interest in the Contract, the Contractor shall ensure compliance with the disclosure requirements in IC § 4-2-6-10.5 prior to the execution of this Contract.** If the Contractor is not familiar with these ethical requirements, the Contractor should refer any questions to the Indiana State Ethics Commission, or visit the Inspector General's website at http://www.in.gov/ig/. If the Contractor or its agents violate any applicable ethical standards, the State may, in its sole discretion, terminate this Contract immediately upon notice to the Contractor. In addition, the Contractor may be subject to penalties under IC §§ 4-2-6, 4-2-7, 35-44.1-1-4, and under any other applicable laws.

C. The Contractor certifies by entering into this Contract that neither it nor its principal(s) is presently in arrears in payment of taxes, permit fees or other statutory, regulatory or judicially required payments to the State of Indiana. The Contractor agrees that any payments currently due to the State may be withheld from payments due to the Contractor. Additionally, further work or payments may be withheld, delayed, or denied and/or this Contract suspended until the Contractor is current in its payments and has submitted proof of such payment to the State.

D. The Contractor warrants that it has no current, pending or outstanding criminal, civil, or enforcement actions initiated by the State, and agrees that it will immediately notify the State of any such actions. During the term of such actions, the Contractor agrees that the State may delay, withhold, or deny work under any supplement, amendment, change order or other contractual device issued pursuant to this Contract.

E. If a valid dispute exists as to the Contractor's liability or guilt in any action initiated by the State or its agencies, and the State decides to delay, withhold, or deny work to the Contractor, the Contractor may request that it be allowed to continue, or receive work, without delay. The Contractor must submit, in writing, a request

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for review to the Indiana Department of Administration (IDOA) following the procedures for disputes outlined herein. A determination by IDOA shall be binding on the parties. Any payments that the State may delay, withhold, deny, or apply under this section shall not be subject to penalty or interest, except as permitted by IC § 5-17-5.

F. The Contractor warrants that the Contractor and its subcontractors, if any, shall obtain and maintain all required permits, licenses, registrations, and approvals, and shall comply with all health, safety, and environmental statutes, rules, or regulations in the performance of work activities for the State. Failure to do so may be deemed a material breach of this Contract and grounds for immediate termination and denial of further work with the State.

G. The Contractor affirms that, if it is an entity described in IC Title 23, it is properly registered and owes no outstanding reports to the Indiana Secretary of State.

H. As required by IC § 5-22-3-7:

(1) The Contractor and any principals of the Contractor certify that:

A. the Contractor, except for de minimis and nonsystematic violations, has not violated the terms of:

i. IC § 24-4.7 [Telephone Solicitation Of Consumers];

ii. IC § 24-5-12 [Telephone Solicitations]; or

iii. IC § 24-5-14 [Regulation of Automatic Dialing Machines];

in the previous three hundred sixty-five (365) days, even if IC § 24-4.7 is preempted by federal law; and

B. the Contractor will not violate the terms of IC § 24-4.7 for the duration of the Contract, even if IC § 24-4.7 is preempted by federal law.

(2) The Contractor and any principals of the Contractor certify that an affiliate or principal of the Contractor and any agent acting on behalf of the Contractor or on behalf of an affiliate or principal of the Contractor, except for de minimis and nonsystematic violations,

A. has not violated the terms of IC § 24-4.7 in the previous three hundred sixty-five (365) days, even if IC § 24-4.7 is preempted by federal law; and

B. will not violate the terms of IC § 24-4.7 for the duration of the Contract, even if IC § 24-4.7 is preempted by federal law.

12. Condition of Payment. All services provided by the Contractor under this Contract must be performed to the State's reasonable satisfaction, as determined at the discretion of the undersigned State representative and in accordance with all applicable federal, state, local laws, ordinances, rules and regulations. The State shall not be required to pay for work found to be unsatisfactory, inconsistent with this Contract or performed in violation of any federal, state or local statute, ordinance, rule or regulation.

13. Confidentiality of State Information.

A. The Contractor understands and agrees that data, materials, and information disclosed to the Contractor (hereinafter “DWD Data”) may contain confidential and protected information. The Contractor covenants that data, material, and

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information gathered, based upon, or disclosed to the Contractor for the purpose of this Contract will not be disclosed to or discussed with third parties without the prior written consent of the State and shall be used only for the purposes of this Contract.

B. The Contractor will abide by all applicable statutes, regulations, directives, and mandates to protect the privacy rights and interests of individuals who apply for employment and training and related services. The Contractor specifically agrees to adhere to the provisions of IC §22-4-19-6 and IC §4-1-6-1 et seq. Contractor recognizes that it is subject to the penalties for disclosure of protected information under IC §5-14-3-10.

C. The parties acknowledge that the services to be performed by the Contractor for the State under this Contract may require or allow access to data, materials, and information containing Social Security numbers or other personal information maintained by the State in its computer system or other records. In addition to the covenant made above in this section and pursuant to 10 IAC §5-3-1(4), the Contractor and the State agree to comply with the provisions of IC §4-1-10 and IC §4-1-11. If any Social Security number(s) or personal information (as defined in IC §4-1-11-3) is/are disclosed by the Contractor, the Contractor agrees to pay the cost of the notice of disclosure of a breach of the security of the system in addition to any other claims and expenses for which it is liable under the terms of this Contract.

D. 20 CFR 603 regulates the disclosure of Confidential Unemployment Compensation Information ("CUCI"). The Parties agree to comply with 20 CFR 603. Contractor understands and agrees to be bound by the requirements of 20 CFR 603.

E. Pursuant to 20 CFR 603 and IC § 22-4-19-6, the Contractor covenants that it will appropriately safeguard any and all DWD Data pursuant to this Contract and prevent unauthorized disclosure to third parties. Any DWD Data collected or utilized pursuant to this Contract are confidential records pursuant to IC 22-4-19-6, subject to criminal penalties for unauthorized disclosure. Contractor further covenants that access to any DWD Data collected or utilized pursuant to this Contract shall be limited to only those who need to access it, and shall not be used for any purposes beyond those expressly contemplated by this Contract. Contractor shall instruct all its personnel with access to DWD Data regarding confidentiality requirements and the provisions contained in this Contract, including safeguards and sanctions imposed by state law for unauthorized disclosure of DWD Data.

F. The Contractor shall submit to DWD an executed copy of **Exhibit B** ("**Confidentiality Statement**") for each individual providing services under this Contract before giving that individual access to DWD Data.

G. Any DWD Data transmitted to the Contractor shall be transmitted from DWD to Contractor in an encrypted, secure manner. Contractor shall take precautions to ensure that the DWD Data is used in a physically and electronically secure manner. For purposes of this Contract, "use" means to receive, to save, to display, to transmit, to process, to store, and to destroy.

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H. Contractor shall destroy or return to DWD any and all DWD Data in its possession within sixty (60) days of the termination of this Contract.

I. Contractor shall maintain a system to ensure that its compliance with this Contract is capable of being audited, and Contractor shall allow DWD to make on-site inspections to ensure that Contractor is complying with all of the terms of this Contract, including provisions of federal and state law.

J. A "Security Incident" occurs when a Party has reason to believe that there either was or may have been unauthorized access to any of the DWD Data referenced in this Contract, damage caused to any of the DWD Data referenced in this Contract, or theft of any of the DWD Data referenced in this Contract. A security incident includes, but is not limited, to breaches of confidentiality where any use or disclosure of the DWD Data that is not permitted by this Contract or any use or disclosure of the DWD Data that is not permitted by applicable federal and state laws or regulations occurs. If either party has reason to believe that a security incident has occurred, then:

(1) Contractor shall, at its own expense, undertake appropriate mitigating actions as prescribed by applicable federal and state laws and regulations, including providing notice, where required, to the victims, state authorities, and federal authorities.

(2) Contractor shall provide prompt notice of any potential breach to DWD in the manner described below:

i. Reporting of Security Incident to the State. Contractor shall report to the State any security incident of which Contractor becomes aware.

1. A security incident shall be reported by the Contractor Privacy & Security Officer to the DWD Security Manager by both calling (317) 232-7596 within eight (8) hours of becoming aware of the security incident and in electronic form to PrivacyandSecurityOfficers@DWD.in.gov within twenty-four (24) hours of becoming aware of the security incident.

2. If the Contractor Privacy & Security Officer is unable to reach the DWD Security Officer at the above phone number, then the Contractor Privacy & Security Officer shall report the security incident to the DWD Chief Information Officer by calling (317) 234-8371 within eight (8) hours of becoming aware of the security incident.

3. In the event a security incident is discovered outside of normal business hours, leaving a voice message at the above-listed telephone numbers shall be considered sufficient oral notification; however in all instances, Contractor shall also complete notification by electronic form to PrivacyandSecurityOfficers@DWD.in.gov within twenty-four (24) hours of becoming aware of the security incident.

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(3) The following format should be used when reporting the security incident electronically:

i. **Name of Agency**

1. Incident # (number assigned by reporting entity)

ii. **Type of Incident –**

1. Date and Time of Report
(Date and time incident was initially reported)
2. Date and Time of Incident
(Date and time incident occurred)
3. Time potential breach was identified

iii. **Name and Title of Person Reporting Incident**

1. Contact Information (of person reporting incident)

iv. **Summary of Incident**
(Include pertinent information regarding the potential security breach)

v. **Description of Personally Identifiable Information Involved**
(Include number of participant records involved)

vi. **Action Taken**

1. Name of Person(s) Conducting Preliminary Investigation
2. Contact Information (of individual responsible for Issue Analysis)
3. Date Investigation started
4. Action(s) Taken
(include dates, times, and names of agencies notified of the Incident)

vii. **Conclusion**

1. Measures taken to address issue and prevent any reoccurrences

K. Contractor shall not publish or disclose in any way any information derived from or relating to DWD Data without the express, written consent of DWD.

L. DWD shall have the right to unilaterally and immediately terminate this Contract and require Contractor to return or destroy all DWD Data in its possession in the event of an unauthorized disclosure of DWD Data.

14. Continuity of Services.

a. The Contractor recognizes that the service(s) to be performed under this Contract are vital to the State and must be continued without interruption and that, upon Contract expiration, a successor, either the State or another contractor, may continue them. The Contractor agrees to:

1. Furnish phase-in training; and
2. Exercise its best efforts and cooperation to effect an orderly and efficient transition to a successor.

b. The Contractor shall, upon the State's written notice:

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1. Furnish phase-in, phase-out services for up to sixty (60) days after this Contract expires; and
2. Negotiate in good faith a plan with a successor to determine the nature and extent of phase-in, phase-out services required. The plan shall specify a training program and a date for transferring responsibilities for each division of work described in the plan, and shall be subject to the State's approval. The Contractor shall provide sufficient experienced personnel during the phase-in, phase-out period to ensure that the services called for by this Contract are maintained at the required level of proficiency.

c. The Contractor shall allow as many personnel as practicable to remain on the job to help the successor maintain the continuity and consistency of the services required by this Contract. The Contractor also shall disclose necessary personnel records and allow the successor to conduct on-site interviews with these employees. If selected employees are agreeable to the change, the Contractor shall release them at a mutually agreeable date and negotiate transfer of their earned fringe benefits to the successor.

d. The Contractor shall be reimbursed for all reasonable phase-in, phase-out costs (i.e., costs incurred within the agreed period after contract expiration that result from phase-in, phase-out operations).

15. Debarment and Suspension.

a. The Contractor certifies by entering into this Contract that neither it nor its principals nor any of its subcontractors are presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from entering into this Contract by any federal agency or by any department, agency or political subdivision of the State of Indiana. The term "principal" for purposes of this Contract means an officer, director, owner, partner, key employee or other person with primary management or supervisory responsibilities, or a person who has a critical influence on or substantive control over the operations of the Contractor.

b. The Contractor certifies that it has verified the state and federal suspension and debarment status for all subcontractors receiving funds under this Contract and shall be solely responsible for any recoupment, penalties or costs that might arise from use of a suspended or debarred subcontractor. The Contractor shall immediately notify the State if any subcontractor becomes debarred or suspended, and shall, at the State's request, take all steps required by the State to terminate its contractual relationship with the subcontractor for work to be performed under this Contract.

16. Default by State. If the State, sixty (60) days after receipt of written notice, fails to correct or cure any material breach of this Contract, the Contractor may cancel and terminate this Contract and institute measures to collect monies due up to and including the date of termination.

17. Disputes.

a. Should any disputes arise with respect to this Contract, the Contractor and the State agree to act immediately to resolve such disputes. Time is of the essence in the resolution of disputes.

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b. The Contractor agrees that, the existence of a dispute notwithstanding, it will continue without delay to carry out all of its responsibilities under this Contract that are not affected by the dispute. Should the Contractor fail to continue to perform its responsibilities regarding all non-disputed work, without delay, any additional costs incurred by the State or the Contractor as a result of such failure to proceed shall be borne by the Contractor, and the Contractor shall make no claim against the State for such costs.

c. If the parties are unable to resolve a contract dispute between them after good faith attempts to do so, a dissatisfied party shall submit the dispute to the Commissioner of the IDOA for resolution. The dissatisfied party shall give written notice to the Commissioner and the other party. The notice shall include (1) a description of the disputed issues, (2) the efforts made to resolve the dispute, and (3) a proposed resolution. The Commissioner shall promptly issue a Notice setting out documents and materials to be submitted to the Commissioner in order to resolve the dispute; the Notice may also afford the parties the opportunity to make presentations and enter into further negotiations. Within thirty (30) business days of the conclusion of the final presentations, the Commissioner shall issue a written decision and furnish it to both parties. The Commissioner's decision shall be the final and conclusive administrative decision unless either party serves on the Commissioner and the other party, within ten (10) business days after receipt of the Commissioner's decision, a written request for reconsideration and modification of the written decision. If the Commissioner does not modify the written decision within thirty (30) business days, either party may take such other action helpful to resolving the dispute, including submitting the dispute to an Indiana court of competent jurisdiction. If the parties accept the Commissioner's decision, it may be memorialized as a written Amendment to this Contract if appropriate.

d. The State may withhold payments on disputed items pending resolution of the dispute. The unintentional nonpayment by the State to the Contractor of one or more invoices not in dispute in accordance with the terms of this Contract will not be cause for the Contractor to terminate this Contract, and the Contractor may bring suit to collect these amounts without following the disputes procedure contained herein.

e. With the written approval of the Commissioner of the IDOA, the parties may agree to forego the process described in subdivision C. relating to submission of the dispute to the Commissioner.

f. This paragraph shall not be construed to abrogate provisions of IC § 4-6-2-11 in situations where dispute resolution efforts lead to a compromise of claims in favor of the State as described in that statute. In particular, releases or settlement agreements involving releases of legal claims or potential legal claims of the state should be processed consistent with IC § 4-6-2-11, which requires approval of the Governor and Attorney General.

18. Drug-Free Workplace Certification. As required by Executive Order No. 90-5 dated April 12, 1990, issued by the Governor of Indiana, the Contractor hereby covenants and agrees to make a good faith effort to provide and maintain a drug-free workplace. The Contractor will give written notice to the State within ten (10) days after receiving actual notice that the Contractor, or an employee of the Contractor in the State of Indiana, has been convicted of a criminal drug violation occurring in the workplace. False certification or violation of this certification may result in sanctions including, but not limited to, suspension of contract payments, termination of this Contract and/or debarment of contracting opportunities with the State for up to three (3) years.

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In addition to the provisions of the above paragraph, if the total amount set forth in this Contract is in excess of $25,000.00, the Contractor certifies and agrees that it will provide a drug-free workplace by:

A. Publishing and providing to all of its employees a statement notifying them that the unlawful manufacture, distribution, dispensing, possession or use of a controlled substance is prohibited in the Contractor's workplace, and specifying the actions that will be taken against employees for violations of such prohibition;

B. Establishing a drug-free awareness program to inform its employees of: (1) the dangers of drug abuse in the workplace; (2) the Contractor's policy of maintaining a drug-free workplace; (3) any available drug counseling, rehabilitation and employee assistance programs; and (4) the penalties that may be imposed upon an employee for drug abuse violations occurring in the workplace;

C. Notifying all employees in the statement required by subparagraph (A) above that as a condition of continued employment, the employee will (1) abide by the terms of the statement; and (2) notify the Contractor of any criminal drug statute conviction for a violation occurring in the workplace no later than five (5) days after such conviction;

D. Notifying the State in writing within ten (10) days after receiving notice from an employee under subdivision (C)(2) above, or otherwise receiving actual notice of such conviction;

E. Within thirty (30) days after receiving notice under subdivision (C)(2) above of a conviction, imposing the following sanctions or remedial measures on any employee who is convicted of drug abuse violations occurring in the workplace: (1) taking appropriate personnel action against the employee, up to and including termination; or (2) requiring such employee to satisfactorily participate in a drug abuse assistance or rehabilitation program approved for such purposes by a federal, state or local health, law enforcement, or other appropriate agency; and

F. Making a good faith effort to maintain a drug-free workplace through the implementation of subparagraphs (A) through (E) above.

19. Employment Eligibility Verification. As required by IC § 22-5-1.7, the Contractor swears or affirms under the penalties of perjury that the Contractor does not knowingly employ an unauthorized alien. The Contractor further agrees that:

a. The Contractor shall enroll in and verify the work eligibility status of all his/her/its newly hired employees through the E-Verify program as defined in IC § 22-5-1.7-3. The Contractor is not required to participate should the E-Verify program cease to exist. Additionally, the Contractor is not required to participate if the Contractor is self-employed and does not employ any employees.

b. The Contractor shall not knowingly employ or contract with an unauthorized alien. The Contractor shall not retain an employee or contract with a person that the Contractor subsequently learns is an unauthorized alien.

c. The Contractor shall require his/her/its subcontractors, who perform work under this Contract, to certify to the Contractor that the subcontractor does not knowingly employ or contract with an unauthorized alien and that the subcontractor has enrolled and is participating in the E-Verify program. The Contractor agrees to maintain this certification throughout the duration of the term of a contract with a subcontractor.

The State may terminate for default if the Contractor fails to cure a breach of this provision no later than thirty (30) days after being notified by the State.

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20. **Employment Option.** If the State determines that it would be in the State's best interest to hire an employee of the Contractor, the Contractor will release the selected employee from any non-competition agreements that may be in effect. This release will be at no cost to the State or the employee.

21. **Force Majeure.** In the event that either party is unable to perform any of its obligations under this Contract or to enjoy any of its benefits because of natural disaster or decrees of governmental bodies not the fault of the affected party (hereinafter referred to as a "Force Majeure Event"), the party who has been so affected shall immediately or as soon as is reasonably possible under the circumstances give notice to the other party and shall do everything possible to resume performance. Upon receipt of such notice, all obligations under this Contract shall be immediately suspended. If the period of nonperformance exceeds thirty (30) days from the receipt of notice of the Force Majeure Event, the party whose ability to perform has not been so affected may, by giving written notice, terminate this Contract.

22. **Funding Cancellation.** As required by Financial Management Circular 2007-1 and IC § 5-22-17-5, when the Director of the State Budget Agency makes a written determination that funds are not appropriated or otherwise available to support continuation of performance of this Contract, this Contract shall be canceled. A determination by the Director of State Budget Agency that funds are not appropriated or otherwise available to support continuation of performance shall be final and conclusive.

23. **Governing Law.** This Contract shall be governed, construed, and enforced in accordance with the laws of the State of Indiana, without regard to its conflict of laws rules. Suit, if any, must be brought in the State of Indiana.

24. **HIPAA Compliance.** If this Contract involves services, activities or products subject to the Health Insurance Portability and Accountability Act of 1996 (HIPAA), the Contractor covenants that it will appropriately safeguard Protected Health Information (defined in 45 CFR 160.103), and agrees that it is subject to, and shall comply with, the provisions of 45 CFR 164 Subpart E regarding use and disclosure of Protected Health Information.

25. **Indemnification.** The Contractor agrees to indemnify, defend, and hold harmless the State, its agents, officials, and employees from all third party claims and suits including court costs, attorney's fees, and other expenses caused by any act or omission of the Contractor and/or its subcontractors, if any, in the performance of this Contract. The State will not provide indemnification to the Contractor.

26. **Independent Contractor; Workers' Compensation Insurance.** The Contractor is performing as an independent entity under this Contract. No part of this Contract shall be construed to represent the creation of an employment, agency, partnership or joint venture agreement between the parties. Neither party will assume liability for any injury (including death) to any persons, or damage to any property, arising out of the acts or omissions of the agents, employees or subcontractors of the other party. The Contractor shall provide all necessary unemployment and workers' compensation insurance for the Contractor's employees, and shall provide the State with a Certificate of Insurance evidencing such coverage prior to starting work under this Contract.

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27. **Indiana Veteran Owned Small Business Enterprise Compliance.** Award of this Contract was based, in part, on the Indiana Veteran Owned Small Business Enterprise ("IVOSB") participation plan, as detailed in the IVOSB Subcontractor Commitment Form, commonly referred to as "Attachment A-1" in the procurement documentation and incorporated by reference herein. Therefore, any changes to this information during the Contract term must be approved by IDOA's Division of Supplier Diversity and may require an amendment. It is the State's expectation that the Contractor will meet the subcontractor commitments during the Contract term. The following certified IVOSB subcontractor(s) will be participating in this Contract:

IVOSB	Company Name	Phone	Email of Contact	Percent
N/A	*N/A*	*N/A*	*N/A*	*N/A*

Briefly describe the IVOSB service(s)/product(s) to be provided under this Contract and include the estimated date(s) for utilization during the Contract term:

Not Applicable – No MWBE subcontractors will be on this engagement.

A copy of each subcontractor agreement must be submitted to the Division of Supplier Diversity within thirty (30) days of the effective date of this Contract. The subcontractor agreements may be uploaded into Pay Audit (Indiana's subcontractor payment auditing system), emailed to IndianaVeteransPreference@idoa.IN.gov, or mailed to IDOA, 402 W. Washington Street, Room W-462, Indianapolis, IN 46204. Failure to provide a copy of any subcontractor agreement may be deemed a violation of the rules governing IVOSB procurement and may result in sanctions allowable under 25 IAC 9-5-2. Requests for changes must be submitted to IndianaVeteransPreference@idoa.IN.gov for review and approval before changing the participation plan submitted in connection with this Contract.

The Contractor shall report payments made to certified IVOSB subcontractors under this Contract on a monthly basis using Pay Audit. The Contractor shall notify subcontractors that they must confirm payments received from Contractor in Pay Audit. The Pay Audit system can be accessed on the IDOA webpage at: www.in.gov/idoa/mwbe/payaudit.htm. The Contractor may also be required to report IVOSB certified subcontractor payments directly to the Division of Supplier Diversity, as reasonably requested and in the format required by the Division of Supplier Diversity.

The Contractor's failure to comply with the provisions in this clause may be considered a material breach of the Contract.

28. Information Technology Enterprise Architecture Requirements. If this Contract involves information technology-related products or services, the Contractor agrees that all such products or services are compatible with any of the technology standards found at https://www.in.gov/iot/2394.htm that are applicable, including the assistive technology standard. The State may terminate this Contract for default if the terms of this paragraph are breached.

29. Insurance.

A. The Contractor and its subcontractors (if any) shall secure and keep in force during the term of this Contract the following insurance coverages (if applicable) covering the Contractor for any and all claims of any nature which may in any manner arise out of or result from Contractor's performance under this Contract:

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1. Commercial general liability, including contractual coverage, and products or completed operations coverage (if applicable), with minimum liability limits not less than $700,000 per person and $5,000,000 per occurrence unless additional coverage is required by the State. The State is to be named as an additional insured on a primary, non-contributory basis for any liability arising directly or indirectly under or in connection with this Contract.
2. Automobile liability for owned, non-owned and hired autos with minimum liability limits not less than $700,000 per person and $5,000,000 per occurrence. The State is to be named as an additional insured on a primary, non-contributory basis.
3. Errors and Omissions liability with minimum liability limits of $1,000,000 per claim and in the aggregate. Coverage for the benefit of the State shall continue for a period of two (2) years after the date of service provided under this Contract.
4. Fiduciary liability if the Contractor is responsible for the management and oversight of various employee benefit plans and programs such as pensions, profit-sharing and savings, among others with limits no less than $700,000 per cause of action and $5,000,000 in the aggregate.
5. Valuable Papers coverage, if applicable, with an Inland Marine Policy Insurance with limits sufficient to pay for the re-creation and reconstruction of such records.
6. Surety or Fidelity Bond(s) if required by statute or by the agency.
7. Cyber Liability if requested by the State addressing risks associated with electronic transmissions, the internet, networks and informational assets, and having limits of no less than $700,000 per occurrence and $5,000,000 in the aggregate.

The Contractor shall provide proof of such insurance coverage by tendering to the undersigned State representative a certificate of insurance prior to the commencement of this Contract and proof of workers' compensation coverage meeting all statutory requirements of IC §22-3-2. In addition, proof of an "all states endorsement" covering claims occurring outside the State is required if any of the services provided under this Contract involve work outside of Indiana.

B. The Contractor's insurance coverage must meet the following additional requirements:

1. The insurer must have a certificate of authority or other appropriate authorization to operate in the state in which the policy was issued.
2. Any deductible or self-insured retention amount or other similar obligation under the insurance policies shall be the sole obligation of the Contractor.
3. The State will be defended, indemnified and held harmless to the full extent of any coverage actually secured by the Contractor in excess of the minimum requirements set forth above. The duty to indemnify the State under this Contract shall not be limited by the insurance required in this Contract.
4. The Contractor shall endeavor to provide 30 days written notice in advance of any changes to insurance policies required, but in no event shall provide written notice less than 14 days prior to changes to insurance policies.

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5. The Contractor waives and agrees to require their insurer to waive their rights of subrogation against the State of Indiana.

C. Failure to provide insurance as required in this Contract may be deemed a material breach of contract entitling the State to immediately terminate this Contract. The Contractor shall furnish a certificate of insurance and all endorsements to the State before the commencement of this Contract.

30. Key Person(s).

A. If both parties have designated that certain individual(s) are essential to the services offered, the parties agree that should such individual(s) leave their employment during the term of this Contract for whatever reason, the State shall have the right to terminate this Contract upon thirty (30) days' prior written notice.

B. In the event that the Contractor is an individual, that individual shall be considered a key person and, as such, essential to this Contract. Substitution of another for the Contractor shall not be permitted without express written consent of the State.

Nothing in sections A and B, above shall be construed to prevent the Contractor from using the services of others to perform tasks ancillary to those tasks which directly require the expertise of the key person. Examples of such ancillary tasks include secretarial, clerical, and common labor duties. The Contractor shall, at all times, remain responsible for the performance of all necessary tasks, whether performed by a key person or others.

Key person(s) to this Contract is/are None; Not applicable.

31. Licensing Standards. The Contractor, its employees and subcontractors shall comply with all applicable licensing standards, certification standards, accrediting standards and any other laws, rules, or regulations governing services to be provided by the Contractor pursuant to this Contract. The State will not pay the Contractor for any services performed when the Contractor, its employees or subcontractors are not in compliance with such applicable standards, laws, rules, or regulations. If any license, certification or accreditation expires or is revoked, or any disciplinary action is taken against an applicable license, certification, or accreditation, the Contractor shall notify the State immediately and the State, at its option, may immediately terminate this Contract.

32. Merger & Modification. This Contract constitutes the entire agreement between the parties. No understandings, agreements, or representations, oral or written, not specified within this Contract will be valid provisions of this Contract. This Contract may not be modified, supplemented, or amended, except by written agreement signed by all necessary parties.

33. Minority and Women's Business Enterprises Compliance.

Award of this Contract was based, in part, on the Minority and/or Women's Business Enterprise ("MBE" and/or "WBE") participation plan as detailed in the Minority and Women's Business Enterprises Subcontractor Commitment Form, commonly referred to as "Attachment A" in the procurement documentation and incorporated by reference herein. Therefore, any changes to this information during the Contract term must be approved by Division of Supplier Diversity and may require an amendment. It is the State's expectation that the Contractor will meet the subcontractor commitments during the Contract term.

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The following Division of Supplier Diversity certified MBE and/or WBE subcontractors will be participating in this Contract:

M/WBE	Company Name	Phone	Email of Contact	Percent
N/A	*N/A*	*N/A*	*N/A*	*N/A*

Briefly describe the MBE and/or WBE service(s)/product(s) to be provided under this Contract and include the estimated date(s) for utilization during the Contract term:

Not Applicable – No MWBE subcontractors will be on this engagement.

A copy of each subcontractor agreement must be submitted to the Division of Supplier Diversity within thirty (30) days of the effective date of this Contract. The subcontractor agreements may be uploaded into Pay Audit (Indiana's subcontractor payment auditing system), emailed to MWBECompliance@idoa.IN.gov, or mailed to Division of Supplier Diversity, 402 W. Washington Street, Room W-462, Indianapolis IN 46204. Failure to provide a copy of any subcontractor agreement may be deemed a violation of the rules governing MBE/WBE procurement and may result in sanctions allowable under 25 IAC 5-7-8. Requests for changes must be submitted to MWBECompliance@idoa.IN.gov for review and approval before changing the participation plan submitted in connection with this Contract.

The Contractor shall report payments made to Division of Supplier Diversity certified subcontractors under this Contract on a monthly basis using Pay Audit. The Contractor shall notify subcontractors that they must confirm payments received from Contractor in Pay Audit. The Pay Audit system can be accessed on the IDOA webpage at: www.in.gov/idoa/mwbe/payaudit.htm. The Contractor may also be required to report Division of Supplier Diversity certified subcontractor payments directly to the Division, as reasonably requested and in the format required by the Division of Supplier Diversity.

The Contractor's failure to comply with the provisions in this clause may be considered a material breach of this Contract.

34. Nondiscrimination. Pursuant to the Indiana Civil Rights Law, specifically IC § 22-9-1-10, and in keeping with the purposes of the federal Civil Rights Act of 1964, the Age Discrimination in Employment Act, and the Americans with Disabilities Act, the Contractor covenants that it shall not discriminate against any employee or applicant for employment relating to this Contract with respect to the hire, tenure, terms, conditions or privileges of employment or any matter directly or indirectly related to employment, because of the employee's or applicant's race, color, national origin, religion, sex, age, disability, ancestry, status as a veteran, or any other characteristic protected by federal, state, or local law ("Protected Characteristics"). Contractor certifies compliance with applicable federal laws, regulations, and executive orders prohibiting discrimination based on the Protected Characteristics in the provision of services. Breach of this paragraph may be regarded as a material breach of this Contract, but nothing in this paragraph shall be construed to imply or establish an employment relationship between the State and any applicant or employee of the Contractor or any subcontractor.

The State is a recipient of federal funds, and therefore, where applicable, Contractor and any subcontractors shall comply with requisite affirmative action requirements, including reporting, pursuant to 41 CFR Chapter 60, as amended, and Section 202 of Executive Order 11246 as amended by Executive Order 13672.

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35. Notice to Parties. Whenever any notice, statement or other communication is required under this Contract, it will be sent by first class U.S. mail service to the following addresses, unless otherwise specifically advised.

A. Notices to the State shall be sent to:

Indiana Department of Workforce Development

Attn: Commissioner

10 N. Senate Avenue

Indianapolis, IN 46204

B. Notices to the Contractor shall be sent to:

Pondera Solutions

80 Blue Ravine Road #250,

Folsom, CA 95630

As required by IC §4-13-2-14.8, payments to the Contractor shall be made via electronic funds transfer in accordance with instructions filed by the Contractor with the Indiana Auditor of State.

36. Order of Precedence; Incorporation by Reference. Any inconsistency or ambiguity in this Contract shall be resolved by giving precedence in the following order: (1) this Addendum, (2) the State's cloud terms, if applicable, (3) the Form Contract, (4) other attachments prepared by the State, (5) attachments prepared by the Contractor. All attachments, and all documents referred to in this paragraph, are hereby incorporated fully by reference.

37. Ownership of Documents and Materials. Deleted

38. Payments.

A. All payments shall be made thirty five (35) days in arrears in conformance with State fiscal policies and procedures and, as required by IC § 4-13-2-14.8, the direct deposit by electronic funds transfer to the financial institution designated by the Contractor in writing unless a specific waiver has been obtained from the Indiana Auditor of State. No payments will be made in advance of receipt of the goods or services that are the subject of this Contract except as permitted by IC § 4-13-2-20.

B. If the Contractor is being paid in advance for the maintenance of equipment, software or a service as a subscription, then pursuant to IC § 4-13-2-20(b)(14), the Contractor agrees that if it fails to fully provide or perform under this Contract, upon receipt of written notice from the State, it shall promptly refund the consideration paid, pro-rated through the date of non-performance.

39. Penalties/Interest/Attorney's Fees. The State will in good faith perform its required obligations hereunder and does not agree to pay any penalties, liquidated damages, interest or attorney's fees, except as permitted by Indiana law, in part, IC § 5-17-5, IC § 34-54-8, IC § 34-13-1 and IC § 34-52-2-3.

Notwithstanding the provisions contained in IC § 5-17-5, any liability resulting from the State's failure to make prompt payment shall be based solely on the amount of funding

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originating from the State and shall not be based on funding from federal or other sources.

40. **Progress Reports.** The Contractor shall submit progress reports to the State upon request. The report shall be oral, unless the State, upon receipt of the oral report, should deem it necessary to have it in written form. The progress reports shall serve the purpose of assuring the State that work is progressing in line with the schedule, and that completion can be reasonably assured on the scheduled date.

41. **Public Record.** The Contractor acknowledges that the State will not treat this Contract as containing confidential information, and will post this Contract on the transparency portal as required by Executive Order 05-07 and IC § 5-14-3.5-2. Use by the public of the information contained in this Contract shall not be considered an act of the State.

42. **Renewal Option.** This Contract may be renewed under the same terms and conditions, subject to the approval of the Commissioner of the IDOA and the State Budget Director in compliance with IC § 5-22-17-4. The term of the renewed contract may not be longer than the term of the original contract. Any renewal will require updated pricing provided by the Contractor and subject to mutual agreement.

43. **Severability.** The invalidity of any section, subsection, clause or provision of this Contract shall not affect the validity of the remaining sections, subsections, clauses or provisions of this Contract.

44. **Substantial Performance.** This Contract shall be deemed to be substantially performed only when fully performed according to its terms and conditions and any written amendments or supplements.

45. **Taxes.** The State is exempt from most state and local taxes and many federal taxes. The State will not be responsible for any taxes levied on the Contractor as a result of this Contract.

46. **Termination for Convenience.** This Contract may be terminated, in whole or in part, by the State, which shall include and is not limited to the IDOA and the State Budget Agency whenever, for any reason, the State determines that such termination is in its best interest. Termination of services shall be effected by delivery to the Contractor of a Termination Notice at least thirty (30) days prior to the termination effective date, specifying the extent to which performance of services under such termination becomes effective. The Contractor shall be compensated for services properly rendered prior to the effective date of termination. The State will not be liable for services performed after the effective date of termination. The Contractor shall be compensated for services herein provided but in no case shall total payment made to the Contractor exceed the original contract price or shall any price increase be allowed on individual line items if canceled only in part prior to the original termination date. For the purposes of this paragraph, the parties stipulate and agree that IDOA shall be deemed to be a party to this Contract with authority to terminate the same for convenience when such termination is determined by the Commissioner of IDOA to be in the best interests of the State.

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47. Termination for Default

A. With the provision of thirty (30) days' notice to the Contractor, the State may terminate this Contract in whole or in part if the Contractor fails to:

1. Correct or cure any breach of this Contract; the time to correct or cure the breach may be extended beyond thirty (30) days if the State determines progress is being made and the extension is agreed to by the parties;

2. Deliver the supplies or perform the services within the time specified in this Contract or any extension;

3. Make progress so as to endanger performance of this Contract; or

4. Perform any of the other material provisions of this Contract.

B. If the State terminates this Contract in whole or in part, it may acquire, under the terms and in the manner the State considers appropriate, supplies or services similar to those terminated, and the Contractor will be liable to the State for any reasonable excess costs for those supplies or services. However, the Contractor shall continue the work not terminated.

C. The State shall pay the contract price for completed supplies delivered and services accepted. The Contractor and the State shall agree on the amount of payment for manufacturing materials delivered and accepted and for the protection and preservation of the property. Failure to agree will be a dispute under the Disputes clause. The State may withhold from these amounts any sum the State determines to be necessary to protect the State against loss because of outstanding liens or claims of former lien holders.

D. The rights and remedies of the State in this clause are in addition to any other rights and remedies provided by law or equity or under this Contract.

48. Travel. No expenses for travel will be reimbursed unless specifically authorized by this Contract. Permitted expenses will be reimbursed at the rate paid by the State and in accordance with the Budget Agency's Financial Management Circular – Travel Policies and Procedures in effect at the time the expenditure is made. Out-of-state travel requests must be reviewed by the State for availability of funds and for conformance with Circular guidelines.

49. Waiver of Rights. No right conferred on either party under this Contract shall be deemed waived, and no breach of this Contract excused, unless such waiver is in writing and signed by the party claimed to have waived such right. Neither the State's review, approval or acceptance of, nor payment for, the services required under this Contract shall be construed to operate as a waiver of any rights under this Contract or of any cause of action arising out of the performance of this Contract, and the Contractor shall be and remain liable to the State in accordance with applicable law for all damages to the State caused by the Contractor's negligent performance of any of the services furnished under this Contract.

50. Work Standards. The Contractor shall execute its responsibilities by following and applying at all times the highest professional and technical guidelines and standards. If the State becomes dissatisfied with the work product of or the working relationship with those individuals assigned to work on this Contract, the State may request in writing the replacement of any or all such individuals, and the Contractor shall grant such request.

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51. State Boilerplate Affirmation Clause. I swear or affirm under the penalties of perjury that I have not altered, modified, changed or deleted the State's standard contract clauses (as contained in the 2021 OAG/ IDOA Professional Services Contract Manual or the 2021 SCM Template) in any way except as follows:

-Clause 13, Confidentiality of State Information (Modified)
-Clause 29, Insurance (Modified)

-Clause 37, Ownership of Documents and Materials (Deleted)

-Clause 47, Termination for Default (Modified)

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Non-Collusion and Acceptance

The undersigned attests, subject to the penalties for perjury, that the undersigned is the Contractor, or that the undersigned is the properly authorized representative, agent, member or officer of the Contractor. Further, to the undersigned's knowledge, neither the undersigned nor any other member, employee, representative, agent or officer of the Contractor, directly or indirectly, has entered into or been offered any sum of money or other consideration for the execution of this Contract other than that which appears upon the face hereof**. Furthermore, if the undersigned has knowledge that a state officer, employee, or special state appointee, as those terms are defined in IC § 4-2-6-1, has a financial interest in the Contract, the Contractor attests to compliance with the disclosure requirements in IC § 4-2-6-10.5.**

Agreement to Use Electronic Signatures

I agree, and it is my intent, to sign this Contract by accessing State of Indiana Supplier Portal using the secure password assigned to me and by electronically submitting this Contract to the State of Indiana. I understand that my signing and submitting this Contract in this fashion is the legal equivalent of having placed my handwritten signature on the submitted Contract and this affirmation. I understand and agree that by electronically signing and submitting this Contract in this fashion I am affirming to the truth of the information contained therein. I understand that this Contract will not become binding on the State until it has been approved by the Department of Administration, the State Budget Agency, and the Office of the Attorney General, which approvals will be posted on the Active Contracts Database:
https://fs.gmis.in.gov/psp/guest/SUPPLIER/ERP/c/SOI_CUSTOM_APPS.SOI_PUBLIC_CNTRCTS.GBL

In Witness Whereof, the Contractor and the State have, through their duly authorized representatives, entered into this Contract. The parties, having read and understood the foregoing terms of this Contract, do by their respective signatures dated below agree to the terms thereof.

Pondera Solutions LLC

By: Sharie Kirsch
FB8D7816FD6344D...

Title: Sr. Vice President

Date: 3/30/2021 | 15:58 EDT

Indiana Department of Workforce Development

By: Deanna J. Oware
2D89DF366F234A7...

Title: CFO

Date: 3/31/2021 | 08:45 EDT

Electronically Approved by: Indiana Office of Technology By: (for) Tracy E. Barnes, Chief Information Officer	Electronically Approved by: Department of Administration By: (for) Lesley A. Crane, Commissioner
Electronically Approved by: State Budget Agency By: (for) Zachary Q. Jackson, Director	Electronically Approved as to Form and Legality by: Office of the Attorney General By: (for) Theodore E. Rokita, Attorney General

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EXHIBIT A - State of Indiana Additional Terms and Conditions
Software as a Service Engagements

Exhibit 1 to the Contract between the State acting through [agency name] and the Contractor.

DEFINITIONS

Data means all information, whether in oral, written, or electronic form, created by or in any way originating with the State, and all information that is the output of any computer processing, or other electronic manipulation, of any information that was created by or that in any way originated with the State, in the course of using and configuring the Services.

Data Breach means any actual or reasonably suspected unauthorized access to or acquisition of Encrypted Data.

Encrypted Data means Data that that is required to be encrypted under the contract and Statement of Work.

Indiana Office of Technology means the agency established by Ind. Code § 4-13.1-2-1.

Information Security Framework means the State of Indiana's written policy and standards document governing matters affecting security and available at https://www.in.gov/iot/security/information-security-framework2/.

Security Incident means any actual or reasonably suspected unauthorized access to the contractor's system, regardless of whether contractor is aware of a Data Breach. A Security Incident may or may not become a Data Breach.

Service(s) means that which is provided to the State by contractor pursuant to this contract and the contractors obligations under the contract.

Service Level Agreement means a written agreement between both the State and the contractor that is subject to the terms and conditions of this contract. Service Level Agreements should include: (1) the technical service level performance promises (i.e. metrics for performance and intervals for measure); (2) description of service quality; (3) identification of roles and responsibilities; (4) remedies, such as credits; and (5) an explanation of how remedies or credits are calculated and issued.

Statement of Work means the written agreement between both the State and contractor attached to and incorporated into this contract.

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TERMS

1. Data Ownership: The State owns all rights, title, and interest in the Data. The contractor shall not access State user accounts or Data, except: (1) in the normal course of data center operations; (2) in response to Service or technical issues; (3) as required by the express terms of this contract, applicable Statement of Work, or applicable Service Level Agreement; or (4) at the State's written request.

Contractor shall not collect, access, or use Data except as strictly necessary to provide Service to the State. No information regarding State's use of the Service may be disclosed, provided, rented, or sold to any third party for any reason unless required by law or regulation or by an order of a court of competent jurisdiction. This obligation shall survive and extend beyond the term of this contract.

2. Data Protection: Protection of personal privacy and Data shall be an integral part of the business activities of the contractor to ensure there is no inappropriate or unauthorized use of Data at any time. To this end, the contractor shall safeguard the confidentiality, integrity, and availability of Data and shall comply with the following conditions:

a. The contractor shall implement and maintain appropriate administrative, technical, and organizational security measures to safeguard against unauthorized access, disclosure, or theft of Data. Contractor shall implement and maintain heightened security measures with respect to Encrypted Data. Such security measures shall be in accordance with Indiana Office of Technology practice and recognized industry practice, including but not limited to the following:

1. Information Security Framework; and

2. Indiana Office of Technology Cloud Product and Service Agreements, Standard ID: IOT-CS-SEC-010.

b. All Encrypted Data shall be subject to controlled access. Any stipulation of responsibilities shall be included in the Statement of Work and will identify specific roles and responsibilities.

c. The contractor shall encrypt all Data at rest and in transit. The State may, in the Statement of Work, identify Data it deems as that which may be publicly disclosed that is not subject to encryption. Data so designated may be maintained without encryption at rest and in transit. The level of protection and encryption for all Encrypted Data shall meet or exceed that required in the Information Security Framework.

d. At no time shall any Data or processes — that either belong to or are intended for the use of State — be copied, disclosed, or retained by the contractor or any party related to the contractor for subsequent use in any transaction that does not include the State.

e. The contractor shall not use any information collected in connection with the Services for any purpose other than fulfilling its obligations under the contract.

3. Data Location: Storage of Data at rest shall be located solely in data centers in the United States and the contractor shall provide its Services to the State and its end users solely from locations in the United States. The contractor shall not store Data on portable devices, including

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personal laptop and desktop computers. The contractor shall access Data remotely only as required to provide technical support. The contractor shall provide technical user support on a 24/7 basis unless specified otherwise in the Service Level Agreement.

4. Notice Regarding Security Incident or Data Breach:

a. Incident Response: contractor may need to communicate with outside parties regarding a Security Incident, which may include contacting law enforcement, fielding media inquiries, and seeking external expertise as mutually agreed upon, defined by law, or contained in the contract. Discussing Security Incidents and Data Breaches with the State must be handled on an urgent basis, as part of contractor's communication and mitigation processes as mutually agreed upon in the Service Level Agreement, contained in the contract, and in accordance with IC 4-1-11 and IC 24-4.9 as they may apply.

b. Security Incident Reporting Requirements: The contractor shall report a Security Incident to the State-identified contact(s) as soon as possible by telephone and email, but in no case later than two (2) days after the Security Incident occurs. Notice requirements may be clarified in the Service Level Agreement and shall be construed in accordance with IC 4-1-11 and IC 24-4.9 as they may apply.

c. Data Breach Reporting Requirements: If a Data Breach occurs, the contractor shall do the following in accordance with IC 4-1-11 and IC 24-4.9 as they may apply: (1) as soon as possible notify the State-identified contact(s) by telephone and email, but in no case later than two (2) days after the Data Breach occurs unless a shorter notice period is required by applicable law; and (2) take commercially-reasonable measures to address the Data Breach in a timely manner. Notice requirements may be clarified in the Service Level Agreement. If the Data involved in the Data Breach involves protected health information, personally identifying information, social security numbers, or otherwise confidential information, other sections of this contract may apply. The requirements discussed in those sections must be met in addition to the requirements of this section.

5. Responsibilities Regarding Data Breach: This section applies when a Data Breach occurs with respect to Encrypted Data within the possession or control of the contractor.

a. The contractor shall: (1) cooperate with the State as reasonably requested by the State to investigate and resolve the Data Breach; (2) promptly implement necessary remedial measures, if necessary; and (3) document and provide to the State responsive actions taken related to the Data Breach, including any post-incident review of events and actions taken to make changes in business practices in providing the Services, if necessary.

b. Unless stipulated otherwise in the Statement of Work, if a Data Breach is a result of the contractor's breach of its contractual obligation to encrypt Data or otherwise prevent its release as reasonably determined by the State, the contractor shall bear the costs associated with: (1) the investigation and resolution of the Data Breach; (2) notifications to individuals, regulators, or others required by federal and/or state law, or as otherwise agreed to in the Statement of Work; (3) a credit monitoring service required by federal and/or state law, or as otherwise agreed to in the Statement of Work; (4) a website or a toll-free number and call center for affected individuals required by federal and/or state law — all of which shall not amount to less than the average per-record per-person cost calculated for data breaches in the United States (in, for example, the most recent Cost of Data Breach Study: Global Analysis published by the Ponemon Institute at the time of the Data Breach); and (5) complete all corrective actions as

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reasonably determined by contractor based on root cause and on advice received from the Indiana Office of Technology. If the Data involved in the Data Breach involves protected health information, personally identifying information, social security numbers, or otherwise confidential information, other sections of this contract may apply. The requirements discussed in those sections must be met in addition to the requirements of this section.

6. Notification of Legal Requests: If the contractor is requested or required by deposition or written questions, interrogatories, requests for production of documents, subpoena, investigative demand or similar process to disclose any Data, the contractor will provide prompt written notice to the State and will cooperate with the State's efforts to obtain an appropriate protective order or other reasonable assurance that such Data will be accorded confidential treatment that the State may deem necessary.

7. Termination and Suspension of Service:

a. In the event of a termination of the contract, the contractor shall implement an orderly return of Data in a mutually agreeable and readable format. The contractor shall provide to the State any information that may be required to determine relationships between data rows or columns. It shall do so at a time agreed to by the parties or shall allow the State to extract its Data. Upon confirmation from the State, the contractor shall securely dispose of the Data.

b. During any period of Service suspension, the contractor shall not take any action that results in the erasure of Data or otherwise dispose of any of the Data.

c. In the event of termination of any Services or contract in its entirety, the contractor shall not take any action that results in the erasure of Data until such time as the State provides notice to contractor of confirmation of successful transmission of all Data to the State or to the State's chosen vendor.

During this period, the contractor shall make reasonable efforts to facilitate the successful transmission of Data. The contractor shall be reimbursed for all phase-out costs (i.e., costs incurred within the agreed period after contract expiration or termination that result from the transfer of Data or other information to the State). A reimbursement rate shall be agreed upon by the parties during contract negotiation and shall be memorialized in the Statement of Work. After such period, the contractor shall have no obligation to maintain or provide any Data and shall thereafter, unless legally prohibited, delete all Data in its systems or otherwise in its possession or under its control. The State shall be entitled to any post-termination assistance generally made available with respect to the Services, unless a unique data retrieval arrangement has been established as part of a Service Level Agreement.

d. Upon termination of the Services or the contract in its entirety, contractor shall, within 30 days of receipt of the State's notice given in 7(c) above, securely dispose of all Data in all of its forms, including but not limited to, CD/DVD, backup tape, and paper. Data shall be permanently deleted and shall not be recoverable, according to National Institute of Standards and Technology (NIST)-approved methods. Certificates of destruction shall be provided to the State upon completion.

8. Background Checks: The contractor shall conduct a Federal Bureau of Investigation Identity History Summary Check for each employee involved in provision of Services: (1) upon commencement of the contract; (2) prior to hiring a new employee; and (3) for any employee upon the request of the State. The contractor shall not utilize any staff, including

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subcontractors, to fulfill the obligations of the contract who have been convicted of any crime of dishonesty, including but not limited to criminal fraud, or otherwise convicted of any felony or misdemeanor offense for which incarceration for up to one (1) year is an authorized penalty. The contractor shall promote and maintain an awareness of the importance of securing the State's information among the contractor's employees, subcontractors, and agents. If any individual providing Services under the contract is not acceptable to the State, in its sole opinion, as a result of the background or criminal history investigation, the State, in its sole option shall have the right to either: (1) request immediate replacement of the individual; or (2) immediately terminate the contract, related Statement of Work, and related Service Level Agreement.

9. Access to Security Logs and Reports: The contractor shall provide to the State reports on a schedule and in a format specified in the Service Level Agreement as agreed to by both the contractor and the State. Reports shall include latency statistics, user access, user access IP address, user access history, and security logs for all Data. The State's audit requirements shall, if applicable, be defined in the Statement of Work.

10. Contract Audit: The contractor shall allow the State to audit conformance to the contract terms. The State may perform this audit or contract with a third party at its discretion and at the State's expense.

11. Data Center Audit: The contractor shall perform an annual independent audit of its data center(s) where Data, State applications, or other State information is maintained. The contractor shall perform this independent audit at its expense and shall, upon completion, provide an unredacted version of the complete audit report to the State. (The contractor may redact its proprietary information from the unredacted version, however.) A Service Organization Control (SOC) 2 audit report or equivalent approved by the Indiana Office of Technology sets the minimum level of a third-party audit.

The State may perform an annual audit of contractor's data center(s) where Data, State applications, or other State information is maintained. The audit may take place onsite or remotely, at the State's discretion. The State shall provide to contractor thirty (30) days' advance notice prior to the audit. The contractor will make reasonable efforts to facilitate the audit and will make available to the State members of its staff during the audit. The State may contract with a third party to conduct the audit at its discretion and at the State's expense. If the contractor maintains Data, State applications, or other State information at multiple data centers, the State may perform an annual audit of each data center.

The parties agree that any documents provided to the State under this paragraph shall be deemed a trade secret of contractor and is deemed administrative or technical information that would jeopardize a record keeping or security system, and shall be exempt from disclosure under the Indiana Access to Public Records Act, IC 5-14-3.

12. Change Control and Advance Notice: The contractor shall give notice to the State for change management requests. Contractor shall provide notice to the State regarding change management requests that do not constitute an emergency change management request at least two (2) weeks in advance of implementation. Contractor shall provide notice to the State regarding emergency change management requests no more than twenty-four (24) hours after implementation.

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Contractor shall make updates and upgrades available to the State at no additional cost when contractor makes such updates and upgrades generally available to its users. No update, upgrade, or other change to the Service may decrease the Service's functionality, adversely affect State's use of or access to the Service, or increase the cost of the Service to the State.

13. Security: The contractor shall, on an annual basis, disclose its non-proprietary system security plans or security processes and technical limitations to the State such that adequate protection and flexibility can be attained between the State and the contractor. For example: virus checking and port sniffing. The State and the contractor shall share information sufficient to understand each other's roles and responsibilities. The contractor shall take into consideration feedback from the Indiana Office of Technology with respect to the contractor's system security plans.

The parties agree that any documents provided to the State under this paragraph shall be deemed a trade secret of contractor and is deemed administrative or technical information that would jeopardize a record keeping or security system, and shall be exempt from disclosure under the Indiana Access to Public Records Act, IC 5-14-3.

14. Non-disclosure and Separation of Duties: The contractor shall enforce role-based access control, separation of job duties, require commercially-reasonable nondisclosure agreements, and limit staff knowledge of Data to that which is absolutely necessary to perform job duties. The contractor shall annually provide to the State a list of individuals that have access to the Data and/or the ability to service the systems that maintain the Data.

15. Import and Export of Data: The State shall have the ability to import or export Data in piecemeal or in entirety at its discretion, with reasonable assistance provided by the contractor, at any time during the term of contract. This includes the ability for the State to import or export Data to/from other parties at the State's sole discretion. Contractor shall specify in the Statement of Work if the State is required to provide its' own tools for this purpose, including the optional purchase of contractor's tools if contractor's applications are not able to provide this functionality directly.

16. Responsibilities and Uptime Guarantee: The contractor shall be responsible for the acquisition and operation of all hardware, software, and network support related to the Services being provided. The technical and professional activities required for establishing, managing, and maintaining the environments are the responsibilities of the contractor. Subject to the Service Level Agreement, the Services shall be available to the State at all times. The contractor shall allow the State to access and use the Service to perform synthetic transaction performance testing.

The contractor shall investigate and provide to the State a detailed incident report regarding any unplanned Service interruptions or outages. The State may terminate the contract for cause if, at its sole discretion, it determines that the frequency of contractor-preventable outages is sufficient to warrant termination.

17. Subcontractor Disclosure: Contractor shall identify all of its strategic business partners related to Services, including but not limited to all subcontractors or other entities or individuals who may be a party to a joint venture or similar agreement with the contractor, and who may be involved in any application development and/or operations.

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The contractor shall be responsible for the acts and omissions of its subcontractors, strategic business partners, or other entities or individuals who provide or are involved in the provision of Services.

18. Business Continuity and Disaster Recovery: The State's recovery time objective shall be defined in the Service Level Agreement. The contractor shall ensure that the State's recovery time objective has been met and tested as detailed in the Service Level Agreement. The contractor shall annually provide to the State a business continuity and disaster recovery plan which details how the State's recovery time objective has been met and tested. The parties agree that any documents provided to the State under this paragraph shall be deemed administrative or technical information that would jeopardize a record keeping or security system, and shall be exempt from disclosure under the Indiana Access to Public Records Act, IC 5-14-3. The contractor shall work with the State to perform an annual disaster recovery test and take action to correct any issues detected during the test in a time frame mutually agreed upon between the contractor and the State in the Service Level Agreement.

The State's Data shall be maintained in accordance with the applicable State records retention requirement, as determined by the State. The contractor shall annually provide to the State a resource utilization assessment detailing the Data maintained by the contractor. This report shall include the volume of Data, the file formats, and other content classifications as determined by the State.

19. Compliance with Accessibility Standards: The contractor shall comply with and adhere to Accessibility Standards of Section 508 Amendment to the Rehabilitation Act of 1973, or any other state laws or administrative regulations identified by the State.

20. State Additional Terms and Conditions Revision Declaration: The clauses in this Exhibit have not been altered, modified, changed, or deleted in any way except for the following clauses which are named below:_____

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EXHIBIT B

Confidentiality Statement

The undersigned individual, who has been given access to confidential unemployment compensation information ("CUCI") and/or educational records (together "DWD Data") of the **Indiana Department of Workforce Development** (the "DWD"), through the Contract ("Contract") between the DWD and **Pondera Solutions LLC** (the "Contractor"), understands and agrees with each of the following statements:

1) I understand that information related to the DWD's unemployment insurance program, as set forth in IC 22-4-19-6 and 20 CFR 603, is confidential. I understand that if I recklessly violate IC 22-4-19-6, I commit a Class B misdemeanor and may be imprisoned for up to 180 days and fined up to $1000 in accordance with IC 35-50-3-2.

2) I understand that some of the DWD Data utilized in the Contract may be "personally identifiable information" under the Family Educational Rights and Privacy Act and that the disclosure of such information may constitute an invasion of privacy of a student or former student, and I agree to ensure the confidentiality of such data and not impermissibly disclose such data to a third party.

3) I agree that DWD Data will only be used pursuant to the terms of the Contract between the DWD and the Contractor. I will only use DWD Data for legitimate purposes as set forth in the Contract.

4) I agree to be bound by the same provisions and restrictions as the Contractor, as found within the Contract.

5) I agree to use care to protect the DWD Data from unauthorized access, misuse, theft, damage, unauthorized destruction, unauthorized modification, and disclosure.

6) I agree to immediately report any instance of unauthorized access, misuse, theft, damage, unauthorized destruction, unauthorized modification, and disclosure with respect to the DWD Data within my knowledge to my direct supervisor.

_____ _____

Signature/Date

_____

Name (printed)

_____

Employer

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EXHIBIT C

Form Contract

1. OUR PRODUCTS & SERVICES

(a) **Limited License.** Together with our licensors, we own and retain ownership of all rights of whatever nature in and to our products, services, and data (whether tangible or intangible). You may access, view, install, use, copy, modify and distribute our property only as expressly specified in the Agreement and each of us shall at all times act in accordance with applicable laws, including export controls and economic sanctions that apply to us in connection with the Agreement.
(b) **Changes to Service**. Our products and services change from time to time, but we will not change the fundamental nature of our products or services.
(c) **Passwords**. Your access to certain products and services is password protected. You are responsible for assigning the passwords and for ensuring that passwords are kept confidential. Sharing passwords is strictly prohibited. Each of us shall maintain industry standard computing environments to ensure that both your and our property is secure and inaccessible to unauthorized persons.
(d) **Unauthorized Technology**. Unless previously authorized by Thomson Reuters, you must not (i) run or install any computer software or hardware on our products, services or network; use any technology to automatically download, mine, scrape or index our data; or (ii) automatically connect (whether through APIs or otherwise) our data to other data, software, services or networks. Neither of us will knowingly introduce any malicious software or technologies into any products, services or networks.
(e) **Usage Information**. We may collect information related to you or your use of our products, services and data. We may use this information to (i) test, develop and improve our products and services, and create and own derivative works based on such information, provided such information is not identifiable to you or any other person and (ii) to protect and enforce our rights under the Agreement, and we may pass this information to our third party providers for the same purposes.
(f) **Third Party Providers**. Our products and services may include data and software from third parties. Some third party providers require Thomson Reuters to pass additional terms through to you. The third party providers change their terms occasionally and new third party providers are added from time to time. To see the current third party additional terms for our products and services click the following URL: www.thomsonreuters.com/thirdpartyterms. You agree to comply with all applicable third party terms.
(g) **Third Party Supplemental Software**. You may be required to license third party software to operate some of our products and services. Additional terms may apply to the third party software.
(h) **Limitations**. Unless otherwise expressly permitted in the Agreement, you may not: (i) sell, sublicense, distribute, display, store, copy, modify, decompile or disassemble, reverse engineer, translate or transfer our property in whole or in part, or as a component of any other product, service or material; (ii) use our property or our third party providers' property to create any derivative works or competitive products; or (iii) allow any third parties to access, use or benefit from our property in any way. Exercising legal rights that cannot be limited by agreement is not precluded. If you are in the business of providing audit, tax, accounting, or legal services to your clients, this Section 1(h) does not preclude you from using our products and services to benefit your clients in the ordinary course of your business. Except as expressly set forth in this Agreement we retain all rights and you are granted no rights in or to our products, services and data.
(i) **Services**. We will provide the services using reasonable skill and care. The professional services applicable to your order, if any, are described in the ordering document or a statement of work.
(j) **Security**. Each of us will use and will require any third party data processors to use industry standard organizational, administrative, physical and technical safeguards to protect the other's data. Each party will inform the other in accordance with applicable law if such party becomes aware of any unauthorized third-party access to the other party's data and will use reasonable efforts to remedy identified security vulnerabilities.
(k) **Your Responsibilities.** You are responsible for and/or will take all necessary steps to ensure or regarding (i) proper use of our products and services in accordance with all usage instructions and operating specifications; (ii) adherence to the minimum recommended technical requirements; (iii) changes you make to our product, services or data; (iv) your combination of our products, services, data or other property with any other products, services, data or other property; (v) implementing and maintaining proper and adequate virus or malware protection and proper and adequate backup and recovery systems; and (vi) installing updates.

2. INFORMATION SERVICES

(a) **License**. In the ordinary course of your business and for your internal business purposes only you may view, use, download and print data from our information services for individual use and may on an infrequent, irregular and ad hoc basis, distribute limited extracts of our data. Neither such extracts nor downloaded, printed or stored data may reach such quantity as to have independent commercial value and using such data as a substitute for any service (or a substantial part of it) provided by Thomson Reuters, our affiliates or our third party providers is prohibited. Where data is permitted to be used or distributed, Thomson Reuters and the third party content provider, if applicable, must be cited and credited as the source. Copyright notices must be retained on transmitted or printed items. Access to certain data may be restricted depending on the scope of your license.
(b) **Further Distribution**. You may also distribute our data: (i) to authorized users; (ii) to government and regulatory authorities, if specifically requested; and (iii) to third party advisors, limited to the extent required to advise you and provided they are not competitors of Thomson Reuters. Laws applicable in your jurisdiction may allow additional uses.

3. INSTALLED SOFTWARE

(a) **License**. You may install and use our software and documentation only for your own internal business purposes. Software licenses include updates (bug fixes, patches, maintenance releases), and do not include upgrades (releases or versions that include new features or additional functionality) or APIs unless expressly stated in the order form. Your order form details your permitted installations, users, locations, the specified operating environment and other permissions. You may use our software in object code only. You may make necessary copies of our software only for backup and archival purposes.

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(b) **Delivery**. We deliver our software by making it available for download. When you download our software and documentation, if any, you are accepting it for use in accordance with the Agreement.

4. SOFTWARE AS A SERVICE (SaaS)

(a) **License**. You may use our SaaS only for your own internal business purposes.
(b) **Delivery**. We deliver our SaaS by providing you with online access to it. When you access our SaaS, you are accepting it for use in accordance with the Agreement.
(c) **Content**. Our SaaS is designed to protect the content you upload. You grant Thomson Reuters permission to use, store and process your content in accordance with applicable law. Access and use of your content by Thomson Reuters, our employees and contractors will be directed by you and limited to the extent necessary to deliver the SaaS, including training, research assistance, technical support and other services. We may delete or disable your content if required under applicable laws and in such instances, we will use our reasonable efforts to provide notice to you. If your content is lost or damaged, we will assist you in restoring the content to the SaaS from any available backup copy.

5. CHARGES

(a) **Payment and Taxes**. You must pay our charges within 30 days of the date of invoice in the currency stated on your order form. If you are a non-government subscriber and you fail to pay your invoiced charges, you are responsible for collection costs including legal fees. You must also pay applicable taxes and duties, other than taxes on our income, in addition to the price quoted unless you provide valid proof that you are exempt. Invoice disputes must be notified within 15 days of the date of the invoice.
(b) **Changes**. During the term, we can increase, or adjust the basis for calculating, the charges on a periodic basis as set out in your order form. Except as otherwise specifically stated in the order form, we may increase, or adjust the basis for calculating, the charges for our products and services with effect from the start of each renewal term by giving you at least 90 days written notice.
(c) **Excess Use**., You must pay additional charges if you exceed the scope of use specified in your order form based on the rates specified on the order form or our current standard pricing, whichever is greater. We may change the charges if you merge with, acquire or are acquired by another entity which results in additional access to our products, services or data.

6. PRIVACY

Each of us will at all times process, protect and disclose personally identifiable information received as a result of this Agreement ("PII") in accordance with applicable law. Each of us will use reasonable efforts to assist one another in relation to the investigation and remedy of any claim, allegation, action, suit, proceeding or litigation with respect to the unauthorized or unlawful destruction, loss, alteration, disclosure or access to PII. You acknowledge and agree to the transfer and processing of PII in the geographical regions necessary for Thomson Reuters to fulfill our obligations. When applicable to your location, additional terms will apply to the Agreement, including our General Data Protection Regulation (2016/679) (GDPR) terms located at www.tr.com/privacy-information.

7. CONFIDENTIALITY

Confidential information received from each other will not be disclosed to anyone else except to the extent required by law or as permitted under the Agreement. If a court or government agency orders either of us to disclose the confidential information of the other, the other will be promptly notified so that an appropriate protective order or other remedy can be obtained unless the court or government agency prohibits prior notification. This section shall survive three (3) years after the termination of the Agreement or until the confidential information is no longer deemed confidential under applicable law, whichever occurs first.

8. WARRANTIES AND DISCLAIMERS

ALL WARRANTIES, CONDITIONS AND OTHER TERMS IMPLIED BY STATUTE OR COMMON LAW INCLUDING, WITHOUT LIMITATION, WARRANTIES OR OTHER TERMS AS TO SUITABILITY, MERCHANTABILITY, SATISFACTORY QUALITY AND FITNESS FOR A PARTICULAR PURPOSE, ARE EXCLUDED TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAWS. IN ENTERING THIS AGREEMENT, NEITHER PARTY HAS RELIED UPON ANY STATEMENT, REPRESENTATION, WARRANTY OR AGREEMENT OF THE OTHER PARTY EXCEPT FOR THOSE EXPRESSLY CONTAINED IN THIS AGREEMENT.
(a) **EXCLUSION OF WARRANTIES. UNLESS OTHERWISE EXPRESSLY STATED IN THE AGREEMENT, AND TO THE FULLEST EXTENT PERMISSIBLE UNDER APPLICABLE LAWS, WE DO NOT WARRANT OR REPRESENT OR INCLUDE ANY OTHER TERM THAT THE PRODUCTS OR SERVICES WILL BE DELIVERED FREE OF ANY INACCURACIES, INTERRUPTIONS, DELAYS, OMISSIONS OR ERRORS, OR THAT ANY OF THESE WILL BE CORRECTED AND WE WILL NOT BE LIABLE FOR ANY DAMAGES RESULTING FROM SUCH FAULTS. WE DO NOT WARRANT THE LIFE OF ANY URL OR THIRD PARTY WEB SERVICE.**
(b) **INFORMATION. OUR INFORMATION PRODUCTS ARE PROVIDED "AS IS" WITHOUT ANY WARRANTY, CONDITION OR ANY OTHER TERM OF ANY KIND.**
(c) **SOFTWARE. WE WARRANT THAT OUR SOFTWARE PRODUCTS WILL SUBSTANTIALLY CONFORM TO OUR DOCUMENTATION FOR 90 DAYS AFTER DELIVERY. IF DURING THIS WARRANTY PERIOD WE ARE UNABLE TO CORRECT, WITHIN A REASONABLE TIME PERIOD AND MANNER, A SOFTWARE ERROR YOU REPORT TO US, YOU MAY TERMINATE THE ORDER FORM FOR THE AFFECTED SOFTWARE BY PROMPT WRITTEN NOTICE TO US FOLLOWING THE REASONABLE PERIOD AND THE LICENSES WILL IMMEDIATELY TERMINATE. YOUR ONLY REMEDY AND OUR ENTIRE LIABILITY FOR BREACH OF THIS WARRANTY WILL BE A REFUND OF THE APPLICABLE CHARGES.**
(d) **DISCLAIMER. YOU ARE SOLELY RESPONSIBLE FOR THE PREPARATION, CONTENT, ACCURACY AND REVIEW OF ANY DOCUMENTS, DATA, OR OUTPUT PREPARED OR RESULTING FROM THE USE OF ANY PRODUCTS OR SERVICES AND FOR ANY DECISIONS MADE OR ACTIONS TAKEN BASED ON THE DATA CONTAINED IN OR GENERATED BY THE PRODUCTS OR SERVICES.**
(e) **NO ADVICE. WE ARE NOT PROVIDING FINANCIAL, TAX AND ACCOUNTING, LEGAL, COMPLIANCE OR ANY OTHER PROFESSIONAL ADVICE BY ALLOWING YOU TO ACCESS AND USE OUR PRODUCTS, SERVICES OR**

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DATA. YOUR DECISIONS MADE IN RELIANCE ON THE PRODUCTS OR SERVICES OR YOUR INTERPRETATIONS OF OUR DATA ARE YOUR OWN FOR WHICH YOU HAVE FULL RESPONSIBILITY. WE ARE NOT RESPONSIBLE FOR ANY DAMAGES RESULTING FROM ANY DECISIONS BY YOU OR ANYONE ACCESSING THE SERVICES THROUGH YOU MADE IN RELIANCE ON THE SERVICES, INCLUDING FINANCIAL, TAX AND ACCOUNTING, LEGAL COMPLIANCE, OR ANY OTHER PROFESSIONAL ADVICE. YOU AGREE THAT YOU USE THE SERVICES AT YOUR OWN RISK IN THESE RESPECTS.

9. LIABILITY

(a) **LIMITATION. EACH PARTY'S OR ANY OF ITS THIRD PARTY PROVIDERS' ENTIRE LIABILITY IN ANY CALENDAR YEAR FOR DAMAGES ARISING OUT OF OR IN CONNECTION WITH THE AGREEMENT, INCLUDING FOR NEGLIGENCE, WILL NOT EXCEED THE AMOUNT PAYABLE IN THE PRIOR 12 MONTHS FOR THE PRODUCT OR SERVICE THAT IS THE SUBJECT OF THE CLAIM FOR DAMAGES (OR, IF THE CLAIM IS MADE WITHIN THE FIRST 12 MONTHS, 12 TIMES THE AVERAGE OF THE MONTHLY CHARGES PAID). IN NO EVENT SHALL WE OR OUR THIRD PARTY PROVIDERS BE LIABLE FOR ANY PENALTIES, INTEREST, TAXES OR OTHER AMOUNTS IMPOSED BY ANY GOVERNMENTAL OR REGULATORY AUTHORITY. NEITHER PARTY IS LIABLE TO THE OTHER FOR INDIRECT, INCIDENTAL, PUNITIVE, SPECIAL OR CONSEQUENTIAL DAMAGES, FOR LOSS OF DATA, OR LOSS OF PROFITS (IN EITHER CASE, WHETHER DIRECT OR INDIRECT) EVEN IF SUCH DAMAGES OR LOSSES COULD HAVE BEEN FORESEEN OR PREVENTED.**

(b) **Unlimited Liability**. Section 9(a) does not limit either party's liability for (i) fraud, fraudulent misrepresentation, willful misconduct, or conduct that demonstrates reckless disregard for the rights of others; (ii) negligence causing death or personal injury; or (iii) infringement of intellectual property rights. Section 9(a) does not limit your indemnification obligations in Section 9(d) or your obligation to pay the charges on the order form and all amounts for use of the products and services that exceed the usage permissions and restrictions granted to you. Nothing in this Agreement limits liability that cannot be limited under law.

(c) **Third Party Intellectual Property**. If a third party sues you claiming that our products, services or data, excluding any portions of the same provided by our third party providers infringes their intellectual property rights and your use of such products, services or data has been in accordance with the terms of the Agreement, we will defend you against the claim and pay damages that a court finally awards against you or that are included in a settlement approved by Thomson Reuters, provided the claim does not result from: (i) a combination of all or part of our products, services or data with technology, products, services or data not supplied by Thomson Reuters; (ii) modification of all or part of our products, services or data other than by Thomson Reuters or our subcontractors; (iii) use of a version of our products, services or data after we have notified you of a requirement to use a subsequent version; or (iv) your breach of this Agreement. Our obligation in this Section 9(c) is conditioned on you (A) promptly notifying Thomson Reuters in writing of the claim; (B) supplying information we reasonably request; and (C) allowing Thomson Reuters to control the defense and settlement.

(d) **Your Obligations**. ~~You are responsible for any loss, damage or cost we and our affiliates incur arising out of or in connection with a third party claim, or a regulatory fine or penalty, connected to: (i) an allegation that our or our affiliates' use of the information data, software, or other materials provided to us by you or on your behalf, which we are required to host, use or modify in the provision of our products, services or data infringes the intellectual property rights of a third party (except to the extent of any indemnity we provide you under clause 9(c) (Third Party Intellectual Property); (ii) your or your sub-contractors' use of our products, services or data, including communications and networks, in breach of the Agreement; (iii) our or our affiliates' compliance with any instruction given by you to us in the course of the provision of our products, services or data ; or (iv) an assertion by any person accessing or receiving the benefit of any part of our products, services or data through you.~~

(e) We will not be responsible if our product or service fails to perform because of your third party software, your hardware malfunction, or your actions or inaction. If we learn that our product or service failed because of one of these, we also reserve the right to charge you for our work in investigating the failure. At your request we will assist you in resolving the failure at a fee to be agreed upon.

10. TERM, TERMINATION

(a) **Term**. The term and any renewal terms for the products and services are described in your order form. If not otherwise stated in the order form, the Agreement will automatically renew annually unless either of us gives the other at least 60 days written notice before the end of the then current term.

(b) **Suspension**. We may on notice terminate, suspend or limit your use of any portion or all of our products, services or other property if (i) requested to do so by a third party provider, court or regulator; (ii) you become or are reasonably likely to become insolvent or affiliated with one of our competitors; or (iii) there has been or it is reasonably likely that there will be: a breach of security; a breach of your obligations under the Agreement or another agreement between us; a breach of our agreement with a third party provider; or a violation of third party rights or applicable laws. Our notice will specify the cause of the termination, suspension or limitation and, if the cause of the termination suspension or limitation is reasonably capable of being remedied, we will inform you of the actions you must take to reinstate the product or service. If you do not take the actions or the cause cannot be remedied within 30 days, we may suspend, limit or terminate the Agreement in whole or in part. Charges remain payable in full during periods of suspension or limitation arising from your action or inaction.

(c) **Termination**. We may, upon reasonable notice, terminate all or part of the Agreement in relation to a product or service which is being discontinued. Either of us may terminate the Agreement immediately upon written notice if the other commits a material breach and fails to cure the material breach within 30 days of being notified to do so. Any failure to fully pay any amount when due under this Agreement is a material breach for this purpose.

(d) **Effect of Termination**. Except to the extent we have agreed otherwise, upon termination, all your usage rights end immediately and each of us must uninstall or destroy all property of the other and, if requested, confirm this in writing. Termination of the Agreement will not (i) relieve you of your obligation to pay Thomson Reuters any amounts you owe up to and including the date of termination; (ii) affect other accrued rights and obligations; or (iii) terminate those parts of the Agreement that by their nature should continue.

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(e) **Amendments.** We may amend these General Terms and Conditions from time to time by giving you at least 30 days prior written notice. You may request good faith negotiations regarding the amended terms and conditions. If the parties cannot reach mutual agreement on the amended terms and conditions within 30 days, you may terminate the agreement immediately upon written notice.

11. FORCE MAJEURE

We are not liable for any damages or failure to perform our obligations under the Agreement because of circumstances beyond our reasonable control. If those circumstances cause material deficiencies in the products or services and continue for more than 30 days, either of us may terminate any affected product or service on notice to the other.

12. THIRD PARTY RIGHTS

Our affiliates and third-party providers benefit from our rights and remedies under the Agreement. No other third parties have any rights or remedies under the Agreement.

13. GENERAL

(a) **Assignment**. You may not assign, delegate or otherwise transfer the Agreement (including any of your rights or remedies) to anyone else without our prior written consent. We may assign or otherwise transfer the Agreement (including any of our rights or remedies) in whole or in part to an affiliate or any entity that succeeds to all or substantially all of the assets or business associated with one or more products or services, and will notify you of any such assignment or transfer. We may subcontract any of the services in our sole discretion. Any assignment, delegation or other transfer in contravention of this Section 13(a) is void.
(b) **Feedback**. You grant Thomson Reuters a perpetual, irrevocable, transferable, non-exclusive right to use any comments, suggestions, ideas or recommendations you provide related to any of our products or services in any manner and for any purpose.
(c) **Agreement Compliance**. We or our professional representatives may review your compliance with the Agreement throughout the term of the Agreement. If the review reveals that you have exceeded the authorized use permitted by the Agreement, you will pay all unpaid or underpaid charges.
(d) **Governing Law**. If not otherwise stated in the order form, the Agreement will be governed by the laws of the State of New York and each of us hereby irrevocably submits to the exclusive jurisdiction of the federal and state courts of the State of New York located in New York County to settle all disputes or claims arising out of or in connection with the Agreement.
(e) **Precedence**. The descending order of precedence is: third party license terms contained in Section 1(f) of these terms; the applicable order form; and the remaining provisions of the Agreement.
(f) **Trials.** All trials of our products and services are subject to the terms of these General Terms & Conditions, unless we notify you otherwise. Access to our products and services for trials may only be used for your evaluation purposes.
(g) S**upport Provided.** To assist in resolving technical problems with the Services, Thomson Reuters may provide telephone and/or online access to its helpdesk, or may provide self-help tools. Additional information related to the support provided by Thomson Reuters may be described on http://thomsonreuters.com/support-and-training or as otherwise provided by Thomson Reuters.
(h) **No Waiver.** If either party delays or fails to exercise any right or remedy under the Agreement, it will not have waived that right or remedy.
(i) **Entire Agreement and Non-Reliance.** The Agreement contains the entire understanding between us regarding its subject matter and supersedes all prior agreements, understandings, negotiations, proposals and other representations, verbal or written, in each case relating to such subject matter, including without limitation any terms and conditions appearing on a purchase order or other form(s) used by you. Each of us acknowledges that in entering into the Agreement neither of us have relied on any representations made by the other that are not expressed in the Agreement.

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EXHIBIT D, SALES ORDER FORM

WEST ORDER FORM – SPECIAL OFFER
610 Opperman Drive, P.O. Box 64833
St. Paul, MN 55164-1803
Tel: 651-687-8000

THOMSON REUTERS™

EXHIBIT D – Sales Order Form

SUBSCRIBER INFORMATION			
Account	1005581251	Contact Name	
Name	State of Indiana - Department of Workforce Development	Title	
Address Line 1	10 N. Senate Ave	Email	
Address Line 2	Indianapolis, IN 46204	Phone	

BILL TO INFORMATION			
Account	1005393290	Contact Name	
Payor Name	Pondera	Title	
Address Line 1	80 Blue Ravine Rd, Ste 250	Email	
Address Line 2	Folsom, CA 95630	Phone	

OFFER INFORMATION			
Agreement Number	00094869.0	Effective Date	04/01/2021

Material ID	Subscribed Products & Services	Authorized Users	Subscription Periods	Monthly Charges
41870614	CLEAR: Investigations Advanced	30	See Indiana Department of Workforce Development Addendum Contract #00000000000000000000051025 – Exhibit E – Pricing Detail	
42663149	ENCLR SO S2S Access	1		

Material ID	Subscribed Products & Services	Authorized Users	Subscription Periods	Monthly Charges
41987738	BATCH: CIDC & Risk Inform Core Premium	1	See Indiana Department of Workforce Development Addendum Contract #00000000000000000000051025 – Exhibit E – Pricing Detail	

1. **The General Terms and Conditions**, The Thomson Reuters General Terms and Conditions located at legalsolutions.com/ThomsonReuters-General-Terms-Conditions.pdf and attached hereto, apply to all products licensed on this order form. Paragraph 10 (a) of the Thomson Reuters General Terms and Conditions does not apply and this order form will not automatically renew, unless otherwise stated below. In the event that there is a conflict of terms between the Thomson Reuters General Terms and Conditions and this order form, the terms of this order form control.

2. **Charges, Payments & Taxes.** Pondera agrees to pay all charges in full within 30 days of the date of invoice.

3. **Excluded Charges.** For your reference, the current Excluded Charges schedules are located at http://legalsolutions.com/schedule-a-library-government,and Excluded Charges change from time-to-time upon 30 days written or online notice. We may, at our option, make certain products and services Excluded Charges if we are contractually bound or otherwise required to do so by a third party provider or if products or services are enhanced or if new products or services are released after the effective date of this ordering document. Modification of Excluded Charges or Schedule A rates is not a basis for termination under paragraph 10 of the General Terms and Conditions.

4. **Settling a Disputed Balance.** Payments marked "paid in full", or with any other restrictive language, will not operate as an accord and satisfaction without our prior written approval. We reserve our right to collect any remaining amount due to us on your account. Partial payments intended to settle an outstanding balance in full must be sent to: Customer Service, 610 Opperman Drive, P.O. Box 64833, Eagan, MN 55123-1803, along with a written explanation of the disagreement or dispute. This address is different from the address you use to make account payments.

5. **Passwords.** For our products accessed by individually-issued passwords, each user, including each user that receives training, must purchase and be assigned his/her own password. Passwords may only be used by the person to whom the password is issued. Sharing of passwords between or among your personnel is STRICTLY PROHIBITED. We reserve the right to issue additional passwords to you and charge you for such additional password if we learn that a password has been used by a person other than the person to whom the password has been issued.

6. **Material Change.** If, at any time during the term of this ordering document, there is a material change in your organizational structure including, but not limited to merger, acquisitions, significant increase in the number of attorneys at a location covered by the agreement, divestitures, downsizing or dissolution, the parties agree to immediate good faith renegotiation of the terms and conditions of this ordering document, during which we may modify your rates proportionally. If you acquire the assets of, or attorneys from, another entity that is a current subscriber, you assume all obligations under the agreements that apply to those assets and attorneys, and you will pay the invoiced charges on both those agreements as they become due, until a superseding agreement is negotiated in good faith.

7. **CLEAR Products Only.** Due to the regulated or private nature of some data in our information products such as credit header data, motor vehicle data, driver license data and voter registration data, you may need to complete a credentialing process which will include certifying what your legally permissible use of the data will be. You agree to immediately notify us if any of the information you provided in your ordering document or during the credentialing process changes. You agree and warrant that you will strictly limit the access, use and distribution of this data to uses permitted under

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applicable laws, rules and regulations and as permitted by the third party additional terms. You will keep the data confidential. You will use industry standard administrative, physical and technical safeguards to protect the data. You will not disclose it to anyone except as necessary to carry out your permissible use. You will immediately report any misuse, abuse or compromise of the data. You agree to cooperate with any resulting inquiry. If we reasonably believe that the data has been misused, abused or compromised, we may block access without additional notice. You are responsible for all damages caused by misuse, abuse or compromise of the data by you, your employees and any person or entity with whom you shared the data. We will be responsible for damages caused by us. We are not a consumer reporting agency. You may use information product data to support your own processes and decisions but you may not deny any service or access to a service to a consumer based solely upon the information product data. Examples of types of service include eligibility for credit or insurance, employment decision and any other purpose described in the Fair Credit Reporting Act (15 U.S.C.A. 1681b). If the Financial Industry Regulatory Authority regulations apply to you, you may use our information products to verify the accuracy and completeness of information submitted to you by each applicant for registration on Form U4 or Form U5 in compliance with the requirements of FINRA Rule 3110. You may use the information products in this manner only in furtherance of written policies and procedures that are designed to achieve your compliance with FINRA Rule 3110 or as otherwise allowed by the General Terms and Conditions. You may transmit Westlaw data electronically using a feature in the information product or print and share that information product data as necessary in the regular course of your business.

8. **CLEAR Credentialing**. You will not receive access to CLEAR services until your credentials have been verified by us.

9. **CLEAR Services System to System**.

   (a) We will issue 1 entity-wide password for System to System access which will not be assigned to individual users. We will provide you with a security certificate that you must install on your systems in order to access our system(s). You will be required to provide the Internet Protocol (IP) Addresses or IP Address Range in order to access CLEAR. IP Addresses assigned to jurisdictions outside the United States or in West-designated United States Territories are prohibited. You will implement any other security measures we deem necessary. We retain the right to temporarily or permanently block access if your use of the system, including but not limited to high search volume, is compromising the stability or integrity of our systems.

   (b) We may provide 1 entity-wide, non-transferrable, limited license with limited access to the CLEAR services for your internal testing and maintenance purposes. Testing access may only be used for functional testing and counts toward any usage volumes under your CLEAR subscription. You are expressly prohibited from conducting any load testing, as determined in our sole discretion. You represent and warrant that all testing and maintenance will be conducted in strict accordance with our guidelines and instructions, and this agreement.

10. **Batch Ongoing Testing and Maintenance**. We may provide you with 1 entity-wide, non-transferrable, limited license with limited access to the Batch services for your internal testing and maintenance purposes only. Your testing access may only be used for functional testing and is limited to no more than 5,000 transactions per calendar year (partial years to be prorated) at no charge. You are expressly prohibited from conducting any load testing or running any production transactions without our prior written approval. You are responsible for any overages or production transactions run through the testing environment. We will invoice these transactions at then-current commercial rates. You represent and warrant that all testing and maintenance will be conducted in strict accordance with our guidelines and instructions and this agreement.

11. **Batch Annual Inputs.** If your batch inputs for the then current Subscription Period for the product(s) listed below exceeds the corresponding number of lines, or you access data outside of the data sources selected below, we may: 1) request the parties enter into good faith negotiations regarding a superseding agreement, 2) terminate your subscription upon 10 days written notice or 3) limit your access to your fixed rate batch subscription for the remainder of the then-current Subscription Period, during which time you will continue to be billed your Monthly Charges. If your access to your fixed rate batch subscription has been limited, your access will be reinstated on the first day of the following Subscription Period.

Subscription Periods	Material ID	Subscribed Products	Selected Data Sources	Annual Inputs Per Data Source
4/01/2021 - 4/30/2021	41987738	CIDC & Risk Inform	Core Premium	1,000,000
5/01/2021 - 3/31/2022	41987738	CIDC & Risk Inform	Core Premium	500,000
4/01/2022 - 3/31/2023	41987738	CIDC & Risk Inform	Core Premium	150,000
4/01/2023 - 3/31/2024	41987738	CIDC & Risk Inform	Core Premium	150,000

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SUBSCRIBER INFORMATION EXHIBIT

SUBSCRIBER OFFICE & ADMINISTRATOR INFORMATION

Subscriber's Offices (City, State)	Password/License Code Administrator Name[1]	Email Address	Department/Practice Group	Product	% of Total Users by Location[2]	Server Location (Y/N)

[1] Administrators are counted as a user on per user subscriptions
[2] Taxes for software products will be based on % of Total Users by Location

SUBSCRIBER CLEAR® SERVICES INFORMATION

Main Account #		**CLEAR Contact Name**	
Main Account Name		**CLEAR Contact Email**	
Internet Service Provider Name		**CLEAR Contact Telephone**	

The CLEAR contact will receive all CLEAR registration keys, individual users will also receive their registration keys if their email addresses are provided

IP Address Section: Only External IP Addresses or Ranges Must Be Provided

Technical Contact Name		**Technical Contact Email**	
Technical Contact Location		**Technical Contact Telephone**	

Valid external IP addresses or IP ranges belonging to your organization and meeting the following requirements must be provided for all CLEAR orders:
1. IP addresses assigned to jurisdictions outside the United States or our approved U.S. Territories are prohibited.
2. All IP addresses must be IPv4 addresses.

Permissible IP addresses will be those provided below as well as any previously provided IP addresses by you.

_____ **Initial to block CLEAR roaming access. This selection does not allow user access outside of your designated IP address/range. Your users will be required to access CLEAR through your designated entity IPs only.**

Authorized My Account Administrator for CLEAR®

My Account is provided as a service to you for user management, general account information and granting access to other My Account users. Identify which person you would like as your My Account Administrator:

Last Name	First Name, M.I.	Email Address (REQUIRED)

Authorized QuickView+ Users for CLEAR

QuickView+ is provided as a service to you for estimating your charges. Actual charges billed may vary from Quickview+ due to discounts you receive or other charges, such as taxes. Identify which password holder you would like to have Quickview+ access:

Last Name	First Name, M.I.	Authorized Account Number

CLEAR® Users

Account #		Account Address	

Last Name	First Name, M.I.	Email Address	Phone #	IN	AD	AN	SV	TC

If there are additional CLEAR users, additional pages must be submitted with the order

SPECIAL OFFER BILLING OPTIONS (FOR MULTIPLE LOCATIONS ONLY)

___**DEFAULT.** UNLESS OTHERWISE SPECIFIED, YOU WILL RECEIVE ONE COMBINED MONTHLY INVOICE AND A COPY OF EACH PARTICIPATING ACCOUNT'S LOCATION USAGE REPORTS - ALL MAILED TO THE PAYER ACCOUNT OFFICE.

___**ALTERNATIVE #2.** Each account will be billed separately, each receiving an invoice and a location usage report. Special offer adjustments will be allocated to the individual accounts based on their actual usage charges.

___**ALTERNATIVE #3. (Not available for orders with concurrent users)** An invoice and location usage report will be created for each office, allocating special offer adjustments to individual accounts based on their actual usage charges, however each account invoice and associated location usage reports will be independently mailed to the account noted below rather than to the invoiced account location.
Mail to Account:_____

Please note: These billing arrangements do not affect Quickview+.

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EXHIBIT E, STATEMENT OF WORK

Pondera Solutions, LLC (Pondera) will deliver to the Indiana Department of Workforce Development (DWD) its fraud analytics (ID FraudCaster®) and batch data runs together with related implementation services, all as more particularly described in this SOW.

1. SCOPE OF SERVICES

A. **ID FraudCaster**. Pondera will deliver ID FraudCaster as a Software-as-a-Service subscription deployed in Microsoft's Azure environment for an unlimited number of users. The functionality and quantities listed below are included in the base ID FraudCaster subscription; additional quantities will have to be negotiated for additional cost as indicated in Section 3 of this SOW. The specific ID FraudCaster functionality and applicable quantities or limitations will be delivered as follows:

Functionality	Description	Quantity
Data Dashboard	Pondera will provide weekly updates to the executive dashboard that include system metrics and data visualizations. Example metrics include results analytic runs with weekly/year-to-date/lifetime statistics by risk category and total benefit dollars associated. Pondera will configure the metrics based on Department specifications confirmed during the onboarding process.	1 Dashboard
Claimant Validation	Pondera will run current claimants through ID FraudCaster to identify areas of risk such as shared values (such as home address, IP address, e-mail address), deceased participants, behavioral pattern matching, and other anomalies. Results trigger alerts and populate the claimant profiles.	Up to 750,000 regular and PUA/PEUC UI claimants
Employer Validation	Pondera will run existing employers through ID FraudCaster to identify areas of risk. Results trigger alerts and populate the employer profiles.	Up to 100,000 employers
Procedural Alerts	Pondera will configure and deploy alerts/reports to check for customer-defined anomalies. Results will trigger alerts/reports on the Dashboard and will be added to claimant and employer Profiles.	Up to 20 alerts/reports
Geospatial Analysis	Pondera will geocode claimant and employer data for use in geospatial analysis to analyze relationships across participants. Geospatial maps are configured from selected alerts.	Up to 3 maps
Street View	ID FraudCaster will provide street-level mapping to view claimant and employer locations from within the dashboard.	All claimants and employers
Data Matching	ID FraudCaster matches Department claimant and employer data against multiple data sources including the SSA Death Master File (DMF), Commercial Mail Receiving Agency (CMRA), suspicious email repository, and IP address resolution.	All claimants and employers
SuperSearch	Pondera's powerful search tool facilitates exploration across the ID FraudCaster database.	All ID FraudCaster users

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Functionality	Description	Quantity
Thomson Reuters Advanced Investigations CLEAR licenses	Thomson Reuters CLEAR database pulls from over 60 data sources, providing access to billions of records for analytics and reporting. A limited number of Super Users will be able to search across the ID FraudCaster database and public records/social media data access via Thomson Reuters CLEAR. Data sources include but are not limited to individual identity and business records, affiliates, linkages, best known address, criminal backgrounds, and information on social media. **Note: All products described herein are governed by the terms and conditions set forth in Exhibit C.**	Up to 30 Super User licenses
Scorecard	The ID FraudCaster Claimant Scorecard provides users with ready access to current claimants and their associated risk scores. It is available to all ID FraudCaster users (no limit).	1 Claimant Scorecard
Additional State Data Sources	Pondera will interface with up to five (5) State data sources, e.g., NDNH database, DMV records, National Association of State Workforce Agencies (NASWA) Suspicious Actor Repository (SAR), or state incarceration records.	Up to 5 State data sources

B. **Batch Data Runs**. Pondera will perform batch data runs in two phases using two distinct data sources. The initial one-time batch data run includes the entire claimant population with focus on the PUA and PEUC claimants. Pondera also will perform weekly batch data runs of the new claimant population and deliver the results to the ID FraudCaster dashboard. From the time of the initial batch runs through ID FraudCaster go-live, weekly files will be delivered to the DWD through SFTP.

1) Pondera will crossmatch Appriss' U.S. state incarceration records against up to 1,000,000 existing claimants in the Indiana DWD system in this one-time batch. This data set includes all Indiana State prison and over 2,400 prisons and jail facilities nationwide.

2) Pondera will provide actionable ID fraud leads and operational improvements to prevent identity fraud schemes that have plagued states with PUA and PEUC claims post COVID-19. ID FraudCaster produces a world class, ranked identity confirmation score that is based on configurable weighted factors. It matches First Name, Middle Name, Last Name, Date of Birth, Address, and SSN with more from over 60 data sources containing billions of public records. ID FraudCaster will draw from (among other data sources) credit header data, utility records, OFAC lists, FEIN information, international records, and work-affiliations to identify individuals quickly and accurately.

Pondera will run its fraud analytics and risk triage models (red – high-risk, yellow – medium risk, and green – low-risk) set to DWD's configurations and specifications. These analytics include geospatial and shared value analytics (e.g., address, email, and IP address), foreign IP address detection. All outputs are validated by our Special Investigations Unit (SIU) and presented in the weekly report.

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C. Training.

1) Pondera will conduct on-site (or remote, at the DWD's discretion) training sessions for each stakeholder group identified by the DWD. Unless otherwise specified, Pondera will hold separate training sessions for ID FraudCaster. Each training session typically requires two to four hours of stakeholder participation. On-site training sessions may be held in as many as three separate locations. Pondera will provide this training on the actual system, including customized, screen-specific user manuals. Optional re-training is available twice per year.

2) On an as-needed basis, Pondera also will offer one-on-one training (remote, on-demand) in 30- to 60-minute intervals for any user in need of additional training or support. These training sessions can be scheduled by request to review a specialized skill set or to train new hires.

3) Pondera will provide follow-up training after the initial implementation for analytics, case tracking, and reporting. This optional refresh-training is available twice per year on-site or via web conferencing (at the DWD's discretion) for all users as well as specific breakouts based on system roles.

4) Pondera will provide an online User Manual for ID FraudCaster as well as field-specific user help embedded directly in Pondera's ID FraudCaster dashboard. There is also user help within the application in the form of contextual help and FAQs.

E. Help Desk. Throughout the term of this SOW, Pondera will provide the following product and Help Desk support for ID FraudCaster:

1) Live phone support is available Monday through Friday from 08:00 to 17:00 Pacific Standard Time, excluding federal holidays. Access to the Pondera electronic ticketing system is available 24 hours a day, 7 days a week, 365 days a year except for scheduled maintenance windows. Pondera will respond to the support tickets submitted through the customer support portal during non-business hours in the next business day.

2) All authorized users can submit support requests via email, phone, or by directly logging them into the customer support portal. Submitting a support request via email automatically creates a support ticket and sends an acknowledgement email. Once a ticket is created, additional stakeholders / managers can monitor the status of support tickets at any time. Each support request must include:

   - A description of the issue and an assessment of its severity
   - A description of the events leading up to the need to create a support ticket (if applicable)
   - Screenshots of the dashboard or system screen related to the problem (if applicable).

3) Every support ticket receives a tracking number and is assigned to a support professional depending on its severity level. Pondera identifies three support ticket severity levels based on urgency and impact. The following table indicates the severity levels for support tickets, a description of what defines the severity of a support ticket, and the response time for each severity level:

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Issue Severity Level	Severity Level Description	Issue Response Time
High	An issue that impacts all Department users of ID FraudCaster. The entire or partial use of the production System is impacted such that there is complete loss of service or System functionality for which there is no workaround. The operation is mission critical to the business and situation is an emergency.	Four (4) hours
Medium	An issue that impacts multiple Department users or a portion of ID FraudCaster. Use of the production System is impacted such that important features or functions do not operation properly but acceptable temporary workarounds exist. Normal operation can continue with workarounds.	One (1) business day
Low	An issue that impacts neither of ID FraudCaster nor DWD's user or access to ID FraudCaster such that the impact is an inconvenience or a minor deficiency. The overall performance and/or system integrity is unaffected.	Two (2) business days

4) **Special Investigations Unit (SIU) Support.** The SIU is the functional and investigative arm of Pondera. Pondera will assign a member of the SIU to work with DWD's investigations and enforcement staff. DWD may include Pondera's assigned SIU member in their regular activities such as team meetings and enforcement debriefs.

The assigned SIU member will assist DWD in the following activities:

- Working with the Help Desk to address the DWD's requests for support
- Interpreting the results from ID FraudCaster
- Capturing Department requests for new functionality, data sources, and other constant improvement activities
- Participating in other Department investigative and enforcement activities, as requested

F. **Hosting Services.** ID FraudCaster is hosted on the Microsoft Azure platform and data centers, which data centers physically store all physical hosting equipment, communication media, server/hardware, application access, and data storage. Pondera will provide frequent, non-intrusive updates and enhancements to ID FraudCaster. As a Software-as-a-Service offering, there will be frequent, non-intrusive enhancements and updates to ID FraudCaster. The 'What's New' tab within ID FraudCaster includes a description of all new functionality.

G. **Backup and Recovery Services**. Pondera will perform encrypted file and database level backups. The encrypted backups are performed by the Azure Recovery Services Vault, are taken at the end of every business day and remain in the Azure data center. The storage system housing backup snapshots is an AES 256-bit Storage Access Network (SAN) storage device encrypted at rest. Each backup set has a pre-configured retention default period of six (6) monthly backups, five (5) weekly full backups, and six (6) daily differential backups. Once the retention period elapses, backups are overwritten.

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H. **Set Up and Configuration Services**. Pondera will provide set up and configuration services for ID FraudCaster specific to DWD. ID FraudCaster will leverage program data from DWD's own data systems. An initial output file for the previous three years will be used.

I. **Transition Upon Contract Expiration or Termination.** Upon the expiration or earlier termination of this SOW, the Pondera Information Security Officer will oversee the export of system results. Following the successful export of the data, Pondera will oversee the data destruction process in accordance with DWD's specific requirements or, absent a specified time period, no later than 30 days after the termination or expiration of this SOW.

Consistent with the Federal Information Processing Standards (FIPS) 199 and a "Moderate" impact system security categorization, Pondera's standard process is as follows:

1) **Destroy method** – applicable to all storage media that are not marked for re-use.

2) **Clear method** – applicable to all data that requires secure erase on a storage media that continues to be utilized by the same or other tenants.

2. DELIVERABLES AND SCHEDULE OF PERFORMANCE

A. Pondera will provide the following implementation deliverables to DWD:

1) **SuperSearch** – Pondera will deploy access to the Thomson Reuters CLEAR database for the number of Super Users specified in Section 1.A. DWD must establish a Virtual Private Network (VPN) for access to the FraudCaster dashboard with SuperSearch with CLEAR data integrated.

2) **Crossmatch & Summary Report** – Pondera will use the results of the ID FraudCaster and Appriss batch data runs and layer-in additional unemployment compensation analytics to develop a report that identifies actionable leads involving individuals currently receiving benefits.

3) **Data Files Specifications Document** – Pondera will provide a data files specification document that details the program data required for the ID FraudCaster implementation. This specifications document details claimant, and employer data elements and format details and includes the methodology for data utilization in ID FraudCaster.

4) **Master Design Document ("MDD")** – Pondera will follow the Pondera Requirements and Onboarding Process (PROP) for this project. The PROP includes structured technical and business fit-gap interviews to validate DWD's requirements. The PROP is used to configure dashboard components and thresholds, and to identify data sources required by ID FraudCaster. Separate PROP session series will be held for ID FraudCaster. The results of the PROPs are the MDDs, which will be reviewed in detail with DWD and must be formally accepted by DWD before configuration work begins.

5) **Training** – Pondera will deliver training as described in Section 1.C.

B. The deliverables described in Section 2.A above, will be deemed approved and accepted when the Acceptance Criteria for the applicable deliverable, as written in the table below, is met.

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Deliverable	Acceptance Criteria
SuperSearch with CLEAR	Confirmed access by Super Users.
Crossmatch & Summary Report	The deliverable is accepted upon receipt of the Report and DWD's review and validation of high-risk cases identified in the underlying data
Data Files Specifications Document	The deliverable is accepted upon receipt of the document.
Master Design Document(s)	By signing the MDD, DWD confirms this deliverable document and its business and technical requirements for ID FraudCaster.
User Training	User Training will be deemed accepted by DWD when Pondera delivers and completes training sessions as described in the Section 1.E.1. of the SOW along with required training materials and user manuals.

C. The deliverables identified in Section 2.A will be produced according to the estimated project schedule below. The final schedule will be established upon a mutual agreement of the project plan. Any delay in the receipt of complete program data may result in a delay to the schedule proposed below.

Project Initiation:	Contract execution
Begin PROP/Requirements Sessions:	Contract execution + 10 calendar days
Receipt of Program Data:	Contract execution +10 business days
Crossmatch & Summary Report**:**	Receipt of program data + 15 business days
SuperSearch (with CLEAR) Go-Live:	Contract execution + 45 business days
Finalize ID FraudCaster (FC) Master Design Document:	Completion of FC PROP sessions + 15 calendar days
ID FraudCaster Go-Live:	Completion of MDDs or Receipt of Source Data **(whichever is later)** + 90 calendar days
ID FraudCaster Scorecard Go-Live	ID FraudCaster Go-Live + 30 calendar days

3. COMPENSATION AND PAYMENT TERMS

This SOW includes a 12-month subscription of the ID FraudCaster and Thomson Reuters data services. The total first-year fee is $1,144,019. This shall be payable in two (2) installments:

- 60% due upon execution of this SOW
- 40% due upon commencement of ID FraudCaster production operations.

For subsequent years, annual subscription fees will be paid annually in advance.

Please see the detailed 3-year price quote included in Attachment 2.

4. STATEMENT OF WORK MANAGERS

The Statement of Work Managers are responsible for deliverable sign-offs and other approvals as required by this SOW. The Statement of Work Managers are:

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Indiana DWD	Pondera
Name & Title: Email: Phone:	Coleen Birch, Project Manager coleen.birch@thomsonsreuters.com (916) 389-7800

5. DEPARTMENT RESPONSIBILITIES

The following are DWD responsibilities necessary for Pondera to provide the Services described in this SOW in a timely manner:

A. Staff Participation

1) Within seven (7) days of contract start, DWD will designate key project stakeholders who will participate in a kick-off session.

2) Within thirty (30) days of contract start, DWD will assign a technical resource who will provide Pondera with the claimant, employer, and payment data necessary to configure ID FraudCaster according to approved project plan.

3) DWD will provide functional and technical user participation during the onboarding and PROP sessions to validate requirements, answer questions, work on thresholds, configure reports and other system functions, identify sources of the DWD data for the analytics, and approve deliverables.

4) Throughout the implementation of ID FraudCaster, DWD will provide Pondera access to functional and technical staff to help Pondera identify and transfer data from source data systems, to validate requirements, and to respond to functional and technical questions about topics such as database schemas, column names, and other technical aspects of DWD source data.

5) DWD will provide functional user participation in quarterly meetings to review the results of the analytics, user statistics, and new data sources and system functions.

B. Data

1) Within forty-five (45) days of contract start, DWD will provide Pondera with the program data relating to claimants, employers, certification periods, and claims required to configure ID FraudCaster as specified in PROP session I.

2) DWD will provide reference descriptions for all reference codes in the data and data dictionaries for all the data delivered to Pondera.

3) DWD will provide a diagram of the relational model as it pertains to the source tables delivered to Pondera. This provides the primary and foreign key relations between the tables.

C. Data Integrity and Security

1) ID FraudCaster are accessed through a secure VPN connection. Within thirty (30) days of contract start, DWD will establish the required VPN to provide Pondera with the data necessary to configure ID FraudCaster.

2) DWD is responsible for the accuracy and completeness of source data. This includes identifying all appropriate source systems, understanding and labeling of data elements, and preparing complete and accurate sources files in a timely manner.

3) DWD will maintain a current list of individuals, and their roles, who are authorized to act and make decisions on behalf of DWD.

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4) DWD will employ industry-standard safeguards, applicable to the size and complexity of the organization, to prevent the unauthorized use or disclosure of protected information obtained through ID FraudCaster or Pondera's employees.

5) DWD will maintain industry-standard general IT computer and application controls, applicable to the size and complexity of the organization, in its computing environment to safeguard the confidentiality, integrity, and availability of protected data.

6) Within sixty (60) days of contract start, DWD will provide Pondera with its data retention policy. If Pondera does not receive DWD's retention policy as stated, Pondera will retain the data for the duration of an active subscription and will destroy it within 30 days of subscription termination.

7) DWD will notify Pondera within 72 hours of an unauthorized use or disclosure of protected information (under applicable laws) provided by Pondera. All instances must be reported to ISO@PonderaSolutions.com.

6. ASSUMPTIONS

Pondera makes the following assumptions applicable to this SOW:

- Pondera will not request or receive any data from DWD until a mutually agreed upon Data Use Agreement is signed by both parties, to be completed within 30 days of contract execution.
- All project timelines are based upon the identified delivery timelines for program data and technical/program feedback. Any delay in the delivery of the data or responses to clarifying questions surrounding the configuration of the data for ID FraudCaster, will result in delays to the proposed implementation schedule and may result in a change order.
- All project timelines are based upon the identified delivery timelines for program data and technical/program feedback. Any delay in the delivery of the data or responses to clarifying questions surrounding the configuration of the data for ID FraudCaster, may result in delays to the proposed implementation schedule.

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EXHIBIT F, PRICING DETAIL

Year 1 Pricing

Description	Cost
ID FraudCaster subscription for up to 500,000 claims in Year 1* (includes 30 CLEAR investigative look-up licenses)	$400,231
On-going Appriss incarceration monitoring for up to 500,000 claimants in Year 1	$365,000
One-time Batch run analysis report of Appriss National Incarceration records on up to 1,000,000 claimants (including all PUA and PEUC claimants) from January 1, 2020 to present	$159,000
One-time Batch run analysis report and shared value analytics on up to 1,000,000 claimants from January 1, 2020 to present	$280,000
TOTAL YEAR 1 COST	**$1,204,231**
TOTAL YEAR 1 COST WITH 5% DISCOUNT	**$1,144,019**

**Additional claimants above the threshold will be charged at $.20/claimant.*

Year 2 Pricing

Description	Cost
ID FraudCaster subscription for up to 150,000 claims in Year 2* (includes 30 CLEAR investigative look-up licenses)	$340,231
On-going Appriss incarceration monitoring for up to 150,000 claimants in Year 2	$145,800
TOTAL YEAR 2 COST	**$486,031**
TOTAL YEAR 2 COST WITH 5% DISCOUNT	**$461,729**

**Additional claimants above the threshold will be charged at $.20/claimant.*

Year 3 Pricing

Description	Cost
ID FraudCaster subscription for up to 150,000 claims in Year 3* (includes 30 CLEAR investigative look-up licenses)	$340,231
On-going Appriss incarceration monitoring for up to 150,000 claimants in Year 3	$145,800
TOTAL YEAR 3 COST	**$486,031**
TOTAL YEAR 3 COST WITH 5% DISCOUNT	**$461,729**

**Additional claimants above the threshold will be charged at $.20/claimant.*

Total 3-Year Pricing

Description	Cost
Total Year 1 Cost **including 5% discount**	$1,144,019
Total Year 2 Cost **including 5% discount**	$461,729
Total Year 3 Cost **including 5% discount**	$461,729
TOTAL 3-YEAR COST	**$2,127,689**
TOTAL 3-YEAR COST WITH 5% DISCOUNT	**$2,067,477**

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Agreed to and accepted by:

Pondera Solutions, LLC		**Indiana Department of Workforce Development**	
By:		By:	
Printed:	Sharie Kirsch	Printed:	
Title:	Senior Vice President	Title:	